



Fishery Limits Act 1976

1976 CHAPTER 86

An Act to extend British fishery limits and make further provision in connection with the regulation of sea fishing.
[22nd December 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of British fishery limits

1.—(1) Subject to the following provisions of this section, British fishery limits extend to 200 miles from the baselines from which the breadth of the territorial sea adjacent to the United Kingdom, the Channel Islands and the Isle of Man is measured.

(2) Her Majesty may by Order in Council, for the purpose of implementing any international agreement or the arbitral award of an international body, or otherwise, declare that British fishery limits extend to such other line as may be specified in the Order.

(3) Where the median line defined below is less than 200 miles from the baselines referred to in subsection (1), and no other line is for the time being specified by Order in Council under subsection (2), British fishery limits extend to the median line.

(4) The median line is a line every point of which is equidistant from the nearest points of, on the one hand, the baselines referred to in subsection (1) and, on the other hand, the corresponding baselines of other countries.

(5) Subject to section 10(2)(b) below, references to British fishery limits in any enactment for the time being in force relating to sea fishing or whaling are to the limits set by or under this section.

Access to
British
fisheries.

2.—(1) The Ministers may by order designate any country outside the United Kingdom, the Channel Islands and the Isle of Man and, in relation to it, areas within British fishery limits in which, and descriptions of sea fish for which, fishing boats registered in that country may fish.

(2) A foreign fishing boat not registered in a country for the time being designated under subsection (1) shall not enter British fishery limits except for a purpose recognised by international law or by any convention for the time being in force between Her Majesty's Government in the United Kingdom and the government of the country to which the boat belongs; and any such boat which enters those limits for such a purpose—

(a) shall return outside the limits as soon as the purpose has been fulfilled; and

(b) shall not fish or attempt to fish while within the limits.

(3) A foreign fishing boat registered in a country designated under subsection (1) shall not fish or attempt to fish within British fishery limits except in an area and for descriptions of fish for the time being designated under this section in relation to that country.

(4) At any time when a foreign fishing boat is in an area within British fishery limits and either—

(a) it is prohibited by this section from fishing in that area at all; or

(b) it is permitted under this section to fish only for certain descriptions of fish,

then, its fishing gear, or so much of the gear as is not required for permitted fishing, shall be stowed in accordance with an order made by the Ministers.

(5) If this section is contravened in the case of any fishing boat—

(a) the master of the boat is liable on summary conviction to a fine not exceeding £50,000 or on conviction on indictment to a fine;

(b) the court may on convicting him of an offence under this section order the forfeiture of any fish or fishing gear found in the boat or taken or used by any person from the boat; and

(c) where the contravention takes place in Scotland, any fish or fishing gear forfeited under paragraph (b) above may be destroyed or disposed of as the court may direct.

(6) The foregoing provisions of this section do not prohibit or restrict fishing by fishing boats registered in a country outside the United Kingdom in any area with respect to which special

provision is made by any arrangement between Her Majesty's Government in the United Kingdom and the government of that country for fishing by such boats for the purpose of scientific research.

(7) Orders made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(8) Without prejudice to section 38(1) of the Interpretation Act 1889 (references to provisions repealed and replaced), a reference to this section is substituted for every reference to section 6 of the Sea Fisheries Act 1968 in the following enactments, that is to say, in—

- (a) sections 4, 6, 7, 8 and 10 of the Sea Fisheries (Scotland) Amendment Act 1885 ;
- (b) section 374 of the Merchant Shipping Act 1894 ;
- (c) section 17(2) of the Sea Fish Industry Act 1962 ; and
- (d) sections 8(1) and (4), 12(1) and (2), 13(2) and (4) and 14 of the Sea Fisheries Act 1968.

Regulation of sea fishing, etc.

3. The following section is substituted for section 4 of the Sea Fish (Conservation) Act 1967—

“Licensing of fishing boats.

4.—(1) The Ministers may by order provide—

- (a) that in any specified area within British fishery limits fishing by fishing boats (whether British or foreign) is prohibited unless authorised by a licence granted by one of the Ministers ;
- (b) that in any specified area outside those limits fishing by British fishing boats is prohibited unless so authorised.

(2) Such an order may apply to fishing generally in the specified area or to fishing—

- (a) for a specified description of sea fish ;
- (b) by a specified method ;
- (c) during a specified season of the year or other period ; or
- (d) in the case of an order under subsection (1)(a), by fishing boats registered in a specified country,

and whether the order is general or limited in scope it may provide for exceptions from the prohibition contained in it.

(3) Where any fishing boat is used in contravention of any prohibition imposed by an order under

Licensing of fishing boats.
1967 c. 84.

this section, the master, the owner and the charterer (if any) are each guilty of an offence under this subsection.

(4) An order under this section, if made with the consent of the Treasury given for the purposes of this subsection, may authorise the making of a charge for a licence under this section.

Such an order shall specify a maximum charge and may specify different maxima in relation to different classes of licence.

(5) A licence under this section shall be granted to the owner or charterer in respect of a named vessel and may authorise fishing generally or may confer limited authority by reference to, in particular,—

- (a) the area within which fishing is authorised ;
- (b) the periods, times or particular voyages during which fishing is authorised ;
- (c) the descriptions and quantities of fish which may be taken ; or
- (d) the method of sea fishing.

(6) A licence under this section may authorise fishing either unconditionally or subject to such conditions as appear to the Minister granting the licence to be necessary or expedient for the regulation of sea fishing, and in particular a licence may contain conditions—

- (a) as to the landing of fish or parts of fish taken under the authority of the licence (including specifying the ports at which the catch is to be landed) ; or
- (b) as to the use to which the fish taken may be put :

and if a licence condition is broken the master, the owner and the charterer (if any) of the vessel named in the licence are each guilty of an offence under this subsection.

(7) The Minister granting a licence under this section may require the master, the owner and the charterer (if any) of the vessel named in the licence to provide him with such statistical information as he may direct, and a person who fails to comply with such a requirement is guilty of an offence under this subsection.

(8) The licensing powers conferred by this section may be exercised so as to limit the number of fishing boats, or of any class of fishing boats, engaged

in fishing in any area, or in fishing in any area for any description of fish, to such extent as appears to the Ministers necessary or expedient for the regulation of sea fishing.

(9) A licence under this section—

- (a) may be varied from time to time ; and
- (b) may be revoked or suspended, if this appears to the Minister who granted the licence to be necessary or expedient for the regulation of sea fishing.

(10) If a licence is varied, revoked or suspended the Minister who granted it may, if he considers it appropriate in all the circumstances of the case, refund the whole or part of any charge made for the licence.

(11) The Ministers may make arrangements for any of their licensing powers under this section (but not the power to make orders under subsection (1)) to be exercised by other persons on their behalf.

(12) In this section “British fishing boat” means a fishing boat which is registered in the United Kingdom or is British-owned, and “foreign fishing boat” means a fishing boat which is not so registered or owned.”.

4.—(1) In section 5 of the Sea Fisheries Act 1968 (regulation of conduct of fishing operations) in subsection (1) for the words “for the purpose of giving effect to any convention for the time being in force between Her Majesty’s Government in the United Kingdom and the government of any other country” there are substituted the words “whenever it appears to them necessary or expedient”.

Extension of power to regulate conduct of fishing operations, etc. 1968 c. 77.

(2) In subsection (2) of that section, in paragraph (a) (British fishing boats) for the words “anywhere within the convention area to which the order relates” there are substituted the words “wherever they may be”.

(3) In subsection (2) of that section, in paragraph (b) (foreign fishing boats) for the words “waters which are within both the fishery limits of the British Islands and that convention area” there are substituted the words “waters within British fishery limits”.

(4) At the end of section 10 of the Sea Fisheries (Scotland) Amendment Act 1885 (powers of sea fishery officers) there are added the words “and section 10 of that Act shall apply for the purposes of this Act as if for any reference to section 8 or 9 of that Act there were substituted a reference to this section.”.

Revised
penalties for
offences.

5. The enactments mentioned in Schedule 1 to this Act are amended as there provided, being amendments which revise the penalties for certain offences under enactments relating to sea fishing.

General

Orders.

6.—(1) Orders made under any provision of this Act shall be made by statutory instrument.

(2) Power conferred by any provision of this Act to make an Order in Council or other order includes power to vary or revoke by a further Order in Council or order under that provision.

Finance.

7.—(1) The Minister of Agriculture, Fisheries and Food may, with the approval of the Treasury, incur expenditure in employing officers and vessels and generally taking such measures as appear to him necessary to protect British fisheries.

(2) Expenses incurred by the Ministers which are attributable to the provisions of this Act, being—

(a) such expenses as are referred to in subsection (1) above ; or

(b) increased administrative expenses,

shall be defrayed out of money provided by Parliament.

Interpretation.

8. In this Act—

“enactment” includes an enactment of the Parliament of Northern Ireland and a Measure of the Northern Ireland Assembly ;

“fishing boat” means any vessel for the time being employed in fishing operations or any operations ancillary thereto ;

“foreign fishing boat” means a fishing boat which is not—

(a) registered in the United Kingdom, the Channel Islands or the Isle of Man ; or

(b) exempted from registration by regulations under section 373 of the Merchant Shipping Act 1894 ; or

(c) owned wholly by a person who is (within the meaning of the Merchant Shipping Act 1894) qualified to own a British ship ;

“miles” means international nautical miles of 1,852 metres ;

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretaries of State concerned with sea fishing in Scotland and Northern Ireland respectively ;

“sea fish” includes shellfish, salmon and migratory trout,
and “sea fishing” has a corresponding meaning.

9.—(1) The enactments mentioned in Schedule 2 to this Act are amended as there provided, being amendments consequential on the provisions of this Act. Amendments,
transitional
provisions
and repeals.

(2) The transitional provisions in Schedule 3 to this Act have effect.

(3) The enactments mentioned in Schedule 4 to this Act are repealed to the extent there specified.

10.—(1) This Act, except the repeals in section 13 of the Sea Fisheries Act 1968 (compensation for damage caused by offence), extends to Northern Ireland. Northern
Ireland.
1968 c. 77

(2) Subject to subsection (3) below,—

(a) nothing in this Act affects the extent of British fishery limits in the waters adjacent both to Northern Ireland and the Republic of Ireland to a distance of 12 miles from the baselines from which the breadth of the respective territorial seas is measured ; and

(b) references to “British fishery limits” in any enactment for the time being in force relating to sea fishing or whaling shall be construed as including a reference to those limits as well as to the limits set by or under section 1 of this Act.

(3) The power conferred on Her Majesty by section 1(2) of this Act to declare the extent of British fishery limits by Order in Council includes power to declare the extent of the limits in the waters referred to in subsection (2)(a) above.

11.—(1) Her Majesty may by Order in Council make such provision for the Isle of Man and the Channel Islands as appears to Her Majesty to be necessary in consequence of the extension of British fishery limits by or under this Act. Isle of Man
and Channel
Islands.

(2) Such an Order may, in particular, specify waters adjacent to the Isle of Man or any of the Channel Islands as waters to which enactments relating to sea fishing or whaling apply—

(a) by virtue of having been extended by Order in Council to the Isle of Man or any of the Channel Islands ; and

(b) with the exceptions, adaptations and modifications (if any) specified in the extending Order.

(3) Her Majesty may by Order in Council direct that all or any of the provisions of sections 2(2) to (7), 3, 4, 5, 8 and 9 and of the Schedules to this Act—

- (a) shall extend, with such exceptions, adaptations and modifications, if any, as may be specified in the Order, to the Isle of Man or any of the Channel Islands ;
- (b) shall apply, with such exceptions, adaptations and modifications as may be specified in the Order, in relation to British fishing boats registered in the Isle of Man or any of the Channel Islands as they apply in relation to British fishing boats registered in the United Kingdom.

Short title and
commence-
ment.

12.—(1) This Act may be cited as the Fishery Limits Act 1976.

(2) The provisions of this Act come into force on such day as the Ministers may by order appoint and different days may be appointed for different provisions and for different purposes.

(3) Without prejudice to subsection (2) orders under that subsection may so provide that the extension of British fishery limits by section 1 of this Act comes into force on different days in relation to different parts of the United Kingdom, the Channel Islands and the Isle of Man.

(4) An order under subsection (2) may contain such supplementary, incidental and transitional provisions as appear to the Ministers to be necessary or expedient in connection with the provisions of this Act which are thereby brought (wholly or partly) into operation, including such adaptations of those provisions then in force as appear to the Ministers to be necessary or expedient in consequence of their partial operation (whether before, on or after the day appointed by the order).

SCHEDULES

SCHEDULE 1

Section 5.

REVISED PENALTIES FOR OFFENCES

Sea Fisheries Regulation Act 1966 (c. 38)

1.—(1) In section 11(1) of the Sea Fisheries Regulation Act 1966 (obstruction of fishery officer) for the words “fifty pounds” substitute the words “£1,000”.

(2) In section 11(2) of that Act (contravention of byelaws restricting fishing, etc.) for the words from “in the case of a first offence” to the end substitute the words “£1,000”.

(3) After section 11(2) of that Act insert the following subsection—

“(2A) The court by which a person is convicted of an offence under subsection (2) above may order the forfeiture of—

(a) any net or other fishing gear used in committing the offence ;

(b) any fish in respect of which the offence was committed.”.

(4) In section 11(5) of that Act (contravention of other byelaws) for the words from “fifty pounds” to the end substitute the words “£1,000”.

Sea Fish (Conservation) Act 1967 (c. 84)

2.—(1) For section 11(1) of the Sea Fish (Conservation) Act 1967 (penalties for offences under that Act) substitute the following subsection—

“(1) Any person guilty of an offence under this Act shall be liable—

(a) in the case of an offence under section 4(3) or 5(1), on summary conviction to a fine not exceeding £50,000 or on conviction on indictment to a fine ;

(b) in the case of an offence under sections 1(1) or (3), 2, 3, 4(6), 5(6) or 6, on summary conviction to a fine not exceeding £1,000 or on conviction on indictment to a fine ;

(c) in the case of an offence under section 4(7) or 7(3) on summary conviction to a fine not exceeding £1,000”.

(2) After paragraph (b) of section 11(2) of that Act, insert the following paragraph—

“(bb) in the case of an offence under section 4(3) or (6), order that the owner or the charterer (if any) of the fishing boat used to commit the offence, or, as the case may be, of the boat named in the licence of which a condition is broken, be disqualified for a specified period from holding a licence under that section in respect of that boat ;”.

Sea Fisheries Act 1968 (c. 77)

3.—(1) In section 5(4) of the Sea Fisheries Act 1968 (contravention of order regulating conduct of sea fishing operations) for the words

SCH. 1 from "in the case of a first offence" to the end substitute the words "to a fine not exceeding £1,000".

(2) In section 10(4) of that Act (penalty for obstruction, etc. of fishery officer) for the words from "in the case of a first offence" to the end substitute the words "to a fine not exceeding £1,000".

(3) Section 13(1) of that Act (compensation for damage caused by offence) is repealed.

(4) In section 13(3) of that Act omit the words "adjudged or" and the words "magistrates' court or".

Sea Fish Industry Act 1970 (c. 11)

4. In section 50 of the Sea Fish Industry Act 1970 (offences in connection with white fish and herring subsidies) for the words "£400" substitute the words "£1,000".

Section 9(1).

SCHEDULE 2

CONSEQUENTIAL AMENDMENTS

Herring Fisheries (Scotland) Act 1860 (c. 92)

1. In section 2 of the Herring Fisheries (Scotland) Act 1860 (definition of "the coasts of Scotland") for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Herring Fisheries (Scotland) Act 1867 (c. 52)

2. In section 11 of the Herring Fisheries (Scotland) Act 1867 (definition of "the coasts of Scotland") for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Sea Fisheries Act 1868 (c. 45)

3. In section 26 of the Sea Fisheries Act 1868 (fishing boats to have official papers on board)—

(a) for the words "the exclusive fishery limits of the British Islands within the meaning of the Sea Fisheries Act 1968" substitute the words "waters adjacent to the United Kingdom, the Channel Islands or the Isle of Man, which are not more than six nautical miles from the baselines from which the breadth of the territorial sea is measured"; and

(b) for the words "outside of those limits" substitute the words "outside such waters".

Sea Fisheries (Clam and Bait Beds) Act 1881 (c. 11)

4. In section 2 of the Sea Fisheries (Clam and Bait Beds) Act 1881 (power to prohibit beam trawling where injurious to clam and bait beds) for the words "within the fishery limits of the British Islands" substitute the words "not more than six nautical miles from the baselines from which the breadth of the territorial sea is measured".

Sea Fisheries Act 1883 (c. 22)

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5. In the Sea Fisheries Act 1883 (enforcement of certain fishery conventions), in sections 4, 5, 12, 18, 25 and 31, for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Sea Fisheries (Scotland) Amendment Act 1885 (c. 70)

6. In section 4 of the Sea Fisheries (Scotland) Amendment Act 1885 (control of modes of fishing within defined areas) for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Fisheries Act 1891 (c. 37)

7. In section 4 of the Fisheries Act 1891 (liability for contravening Convention) for the words "the exclusive fishery limits of the British Islands" substitute the words "British fishery limits".

Whale Fisheries (Scotland) Act 1907 (c. 41)

8. In section 3(4) of the Whale Fisheries (Scotland) Act 1907 (prohibition on whaling in coastal waters) for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Cran Measures Act 1908 (c. 17)

9. In section 11(1) of the Cran Measures Act 1908 (application of Act) for the words "and within the exclusive fishery limits of the British Islands" substitute the words "to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured".

Whale Fisheries (Ireland) Act 1908 (c. 31)

10. In section 3(4) of the Whale Fisheries (Ireland) Act 1908 (prohibition on whaling in coastal waters) for the words "such part of the fishery limits of the British Islands as is mentioned in section 4(2) of the Fishery Limits Act 1964" substitute the words "waters within British fishery limits which are adjacent to Northern Ireland and are not nearer to any point on the baselines from which the breadth of the territorial sea adjacent to Great Britain or the Isle of Man is measured than to any point on the corresponding Northern Irish baselines".

Whaling Industry (Regulation) Act 1934 (c. 49)

11. In section 17(1) of the Whaling Industry (Regulation) Act 1934 (definition of "coastal waters") for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

Salmon and Freshwater Fisheries (Protection) (Scotland) Act 1951 (c. 26)

12. In section 4(a) of the Salmon and Freshwater Fisheries (Protection) (Scotland) Act 1951 (prohibition on use of explosives, etc. to take or destroy fish) for the words "within the fishery limits of the British Islands" substitute the words "up to twelve nautical miles from the baselines from which the breadth of the territorial sea is measured".

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Weights and Measures Act 1963 (c. 31)

13. In section 60 of the Weights and Measures Act 1963 (saving for cran measures) for the words "and within the exclusive fishery limits of the British Islands" substitute the words "to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured".

Fisheries Act (Northern Ireland) 1966 (c. 17) (N.I.)

14. In the Fisheries Act (Northern Ireland) 1966 for the words "such part of the fishery limits of the British Islands as is mentioned in section 4(2) of the Fishery Limits Act 1964" in each place where they occur, that is to say,—

- (a) in sections 16(1)(f) and 206(3) (power to define boundary of waters within Londonderry Area),
- (b) in section 125(1) (power to prohibit trawling in certain areas),
- (c) in section 126(b) (landing or selling fish caught in contravention of byelaws about beam or other trawling),
- (d) in section 206(1) (definition of "waters"), and
- (e) in Schedule 8 (repeals) in the third column of the entry relating to the Steam Trawling (Ireland) Act 1889,

1889 c. 74.

substitute the words "waters within British fishery limits which are adjacent to Northern Ireland and are not nearer to any point on the baselines from which the breadth of the territorial sea adjacent to Great Britain or the Isle of Man is measured than to any point on the corresponding Northern Irish baselines".

Sea Fisheries (Shellfish) Act 1967 (c. 83)

15. In section 1(1) of the Sea Fisheries (Shellfish) Act 1967 (power to make orders as to fisheries for shellfish) for the words "so much of the exclusive fishery limits of the British Islands as is adjacent to Great Britain" substitute the words "waters adjacent to Great Britain to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured".

Sea Fish (Conservation) Act 1967 (c. 84)

16.—(1) In sections 1(3) and (4), 3(2), 5(2) and (8) and 15(3) of the Sea Fish (Conservation) Act 1967, for the words "the fishery limits of the British Islands" substitute the words "British fishery limits".

(2) In section 11(2) and (3) of that Act (penalties) for the reference to an offence under section 4 of that Act substitute a reference to an offence under section 4(3) or (6).

(3) In section 15(2) of that Act (powers of seizure of sea-fishery officers) for paragraphs (b) and (c) substitute the following paragraphs—

- "(b) any fish caught in contravention of a prohibition imposed by an order under section 4 or 5 of this Act, where the

fish are on the fishing boat used in contravention of the prohibition or are in the ownership or custody, or under the control, of the owner, the master or the charterer (if any) of the fishing boat ;

(c) any net or other fishing gear used in contravention of a prohibition imposed by an order under the said section 4 or 5 ;”.

(4) In section 18 of that Act (enforcement of orders in relation to salmon and migratory trout) in subsection (1) for the words “ section 4 of this Act, or any order under section 5 or 6 thereof ” substitute the words “ any order under section 4, 5 or 6 of this Act ”.

(5) In the said section 18 in subsection (2) for the words “ the said section 4, or any order under the said section 5 or 6,” substitute the words “ any order under the said section 4, 5 or 6 ”.

(6) Section 19(2) of that Act is repealed.

(7) In section 23(1) of that Act (certain exceptions for waters adjacent to Northern Ireland)—

(a) for the words “ Sections 4(9) and 5(2) ” substitute the words “ Section 5(2) ” ; and

(b) for the words “ such part of the fishery limits of the British Islands as is mentioned in section 4(2) of the Fishery Limits Act 1964 ” substitute the words “ waters within British fishery limits which are adjacent to Northern Ireland and are not nearer to any point on the baselines from which the breadth of the territorial sea adjacent to Great Britain or the Isle of Man is measured than to any point on the corresponding Northern Irish baselines ”.

Sea Fisheries Act 1968 (c. 77)

17.—(1) In sections 5(3), 8(1), (4), (5) and (6), 9(1) and 10(2) and (3) of the Sea Fisheries Act 1968 for the words “ the fishery limits of the British Islands ” substitute the words “ British fishery limits ”.

(2) The following provisions of that Act are repealed, that is to say,—

(a) section 6 ;

(b) in section 19(1), the definition of “ outer belt ” ;

(c) section 19(2) ; and

(d) in paragraph 23 of Schedule 1, sub-paragraph (b).

Sea Fish Industry Act 1970 (c. 11)

18.—(1) In section 49 of the Sea Fish Industry Act 1970 (white fish and herring subsidies), in subsections (2) and (3) for the words “ the exclusive fishery limits ” in the three places where they occur substitute the words “ coastal waters ”.

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(2) In subsection (7) of that section, for the words from “the exclusive fishery limits” to the end substitute the words “coastal waters are to the waters adjacent to any part of the United Kingdom to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured”.

(3) In section 51 of that Act (reimbursement of Isle of Man herring subsidies), in subsection (1) for the words “exclusive fishery limits” in the two places where they occur substitute the words “coastal waters”.

(4) For subsection (5) of that section substitute the following subsection—

“(5) In this section ‘the coastal waters of the Isle of Man’ means the waters to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea adjacent to the Isle of Man is measured.”.

Water Act 1973 (c. 37)

19. In paragraph 4 of Schedule 2 to the Water Act 1973 (seaward boundary of water authority areas) for the words “in which Her Majesty’s subjects have the exclusive right of fishing” substitute the words “to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured”.

Salmon and Freshwater Fisheries Act 1975 (c. 51)

20. In section 5(1) of the Salmon and Freshwater Fisheries Act 1975 (prohibition on use of explosives, etc. to take or destroy fish) for the words “and within the exclusive fishery limits of the British Islands” substitute the words “to a distance of six nautical miles measured from the baselines from which the breadth of the territorial sea is measured”.

Section 9(2).

SCHEDULE 3

TRANSITIONAL PROVISIONS

Designation orders

1964 c. 72.

1.—(1) The provisions of this paragraph apply to orders made under section 1(3) of the Fishery Limits Act 1964 designating a country and the area in which and the descriptions of sea fish for which fishing boats registered in that country may fish in the outer belt defined by that Act.

(2) Such an order continues in force notwithstanding the repeal of section 1(3) by this Act and has effect (and may be varied or revoked) as if it were an order made under section 2(1) of this Act designating that country for the purposes of that section and designating in relation to it that area (within the former outer belt) and those descriptions of fish.

Fish size orders

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2.—(1) The provisions of this paragraph apply to orders made under section 1 of the Sea Fish (Conservation) Act 1967 prescribing minimum fish sizes for the purpose of prohibitions imposed by and under that section on the carrying, landing and commercial use of under-sized fish. 1967 c. 84.

(2) From the coming into force of the amendment by this Act of subsection (4) of that section replacing the reference to the fishery limits of the British Islands, orders which by virtue of that subsection impose a prohibition on the carrying of under-sized fish by foreign fishing boats shall have effect—

- (a) as if made by virtue of the subsection as amended ; and
- (b) as if the reference in the order to the fishery limits of the British Islands were a reference to British fishery limits.

Nets and gear orders

3.—(1) The provisions of this paragraph apply to orders made under section 3 of the Sea Fish (Conservation) Act 1967 imposing requirements relating to nets and other fishing gear carried by fishing boats.

(2) From the coming into force of the amendment by this Act of subsection (2) of that section replacing the reference to the fishery limits of the British Islands, the prohibitions imposed on foreign fishing boats by Articles 5 and 7 of The Fishing Nets (North-East Atlantic) Order 1976 shall have effect— S.I. 1976,
No. 1324.

- (a) as if that order had been made under the subsection as amended ; and
- (b) as if the reference in those Articles to the fishery limits of the British Islands were a reference to British fishery limits.

(3) The said amendment does not, in the case of other orders made before its coming into force, extend any prohibition imposed by virtue of the said subsection (2), but this is without prejudice to—

- (a) the power conferred by paragraph 8(3) below to adapt such orders ; or
- (b) the power to vary such orders under the subsection as amended.

Licensing orders

4.—(1) The provisions of this paragraph apply to orders made under section 4 of the Sea Fish (Conservation) Act 1967 specifying an area in which fishing by British fishing boats by way of trade or business is prohibited unless authorised by licence.

(2) Such an order continues in force notwithstanding the substitution of a new section 4 by section 3 of this Act and has effect (and may be varied or revoked) as if it were an order made under the new section 4 prohibiting, unless licensed, fishing by British fishing boats by way of trade or business in the area specified in the order.

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1964 c. 72.

(3) Where such an order specifies the areas to which it applies by reference to the "fishery limits of the British Islands", that reference shall continue to be construed in accordance with the Fishery Limits Act 1964.

(4) Where an order continues in force by virtue of sub-paragraph (2), licences authorising fishing in the area to which the order applies also continue in force and have effect (and may be varied, revoked or suspended) as if they had been granted under the new section 4.

Prohibition orders

1967 c. 84.

5.—(1) The provisions of this paragraph apply to orders made under section 5 of the Sea Fish (Conservation) Act 1967 imposing a prohibition in relation to fishing in an area specified in the order.

(2) Where such an order specifies the area to which it applies by reference to "the fishery limits of the British Islands", "the exclusive fishery limits" or any similar expression that reference shall continue to be construed in accordance with the Fishery Limits Act 1964.

(3) From the coming into force of the amendment by this Act of subsection (8) of the said section 5 replacing the reference to the fishery limits of the British Islands that subsection applies as amended—

S.I. 1971,
No. 1623.

(a) to the prohibition contained in the Herring (Celtic Sea) (Prohibition of Fishing Method) Order 1971, and

(b) to subsection (6) of section 5 (duty to return fish) as that subsection applies to fish caught in contravention of that prohibition.

(4) The subsection applies as unamended—

(a) to prohibitions contained in other orders made before the coming into force of the amendment, and

(b) to subsection (6) of section 5 as that subsection applies to fish caught in contravention of such prohibitions.

Powers of British sea fishery officers

6.—(1) The provisions of this paragraph apply to orders made under section 15(3) of the Sea Fish (Conservation) Act 1967 conferring powers on British sea fishery officers to enforce the provisions of sections 1 to 7 of that Act or of orders made under those provisions.

(2) Where by virtue of any of the provisions of paragraphs 2 to 5 above any prohibition contained in, or operating by reference to, an order made under section 1, 3, 4 or 5 of the said Act of 1967 is extended to an area outside the old but within the new fishery limits, the powers conferred for the enforcement of that prohibition shall be correspondingly extended as if the order concerned had been made under section 15(3) as amended by this Act.

(3) In sub-paragraph (2) "the old fishery limits" means the fishery limits of the British Islands set by the Fishery Limits Act 1964 and "the new fishery limits" means British fishery limits set by or under this Act. SCH. 3
1964 c. 72.

Stowage of gear orders

7.—(1) The provisions of this paragraph apply to orders made under section 6(4) of the Sea Fisheries Act 1968 specifying requirements as to stowage of gear by foreign fishing boats. 1968 c. 77.

(2) Such an order continues in force notwithstanding the repeal of section 6 by this Act and has effect (and may be varied or revoked) as if it were an order made under section 2(4) of this Act specifying those requirements for gear of foreign fishing boats required by that section to be stowed while the boat is in any area within British fishery limits.

General

8.—(1) Subject to the foregoing provisions of this Schedule, the provisions of this paragraph apply to references in enactments and in instruments made under enactments to the "fishery limits of the British Islands", the "exclusive fishery limits" and the "outer belt", and to similar references.

(2) Such a reference in an enactment shall continue to be construed in accordance with the Fishery Limits Act 1964 until there is brought into force under this Act an amendment of the enactment replacing that reference.

(3) An order under section 12 of this Act which appoints a day for the coming into force of an amendment replacing such a reference in an enactment may provide for such consequential adaptations in instruments made under the enactment as appear to the Ministers to be necessary or expedient.

(4) Subject to sub-paragraph (3) above, such a reference in an instrument shall continue to be construed in accordance with the Fishery Limits Act 1964.

9. Except so far as expressly provided, the provisions of this Schedule do not prejudice—

- (a) sections 1(5) and 10(2)(b) of this Act (meaning of "British fishery limits" in enactments);
- (b) section 12(2) to (4) of this Act (commencement and related powers);
- (c) section 31 of the Interpretation Act 1889 (construction of instrument by reference to the enactment under which the instrument is made); 1889 c. 63.
- (d) section 38 of that Act (effect of repeals).

Section 9(3).

SCHEDULE 4**REPEALS**

Chapter	Short Title	Extent of Repeal
1964 c. 72.	The Fishery Limits Act 1964.	Section 1(1), (3) and (4). Section 3(1).
1967 c. 84.	The Sea Fish (Conservation) Act 1967.	Section 19(2).
1968 c. 77.	The Sea Fisheries Act 1968.	Section 6. Section 13(1). In section 13(3), the words "adjudged or" and the words "magistrates' court or". In section 19(1), the definition of "the outer belt". Section 19(2). In Schedule 1, in paragraph 23, sub-paragraph (b).

The repeals of sections 1(1) and 3(1) of the Fishery Limits Act 1964 are subject to the saving in section 10(2)(a) of this Act.

Cathedrals Measure 1976

1976 No. 1

A MEASURE passed by the General Synod of the Church of England to make fresh provision with respect to the revision of the constitution and statutes of cathedral churches; and to amend section 42 of the Cathedrals Measure 1963. [25th March 1976]

1.—(1) For the purpose of facilitating the revision from time to time as circumstances may require of the constitutions and statutes of cathedral churches the Standing Committee of the General Synod shall appoint a Commission to be known as the Cathedral Statutes Commission (hereafter in this Measure referred to as “the Commission”).

Revision of constitutions and statutes of cathedral churches.

(2) Where an application in that behalf is made to the Commission by the consenting body of any cathedral church, the Commission shall prepare in accordance with this Measure a scheme for revising the constitution and statutes of that church.

(3) The body which immediately before the passing of this Measure is the consenting body of any cathedral church for the purposes of the Cathedrals Measure 1963 shall be the consenting body of that church for the purposes of this Measure except where a scheme thereunder relating to that church provides that some other body shall be the consenting body thereof for those purposes.

1963 No. 2.

(4) Any scheme prepared under this Measure may either provide a new constitution and new statutes for the cathedral church to which it relates or may amend the constitution and statutes in force therefor immediately before the scheme comes into force.

(5) Subsection (1) of section 14 of the Cathedrals Measure 1963 (which provides that a scheme prepared by a Commission under that Measure may provide that a parish church cathedral shall become a dean and chapter cathedral) shall have effect subject to the following amendments:—

1963 No. 2.

- (a) for the words “the Commission”, where first occurring, there shall be substituted the words “the Cathedral Statutes Commission under the Cathedrals Measure 1976”;
- (b) for the words “the Commission”, in each place where they subsequently occur, there shall be substituted the words “the said Commission”;
- (c) for the words “section 3 of this Measure” there shall be substituted the words “section 2 of that Measure” and

- (d) for the words "Church Assembly under subsection (6)" there shall be substituted the words "General Synod under subsection (7)";

and for the word "under", where first occurring in subsections (2) and (3) of the said section 14, there shall be substituted the words "prepared by virtue of".

(6) The Commission may appoint committees consisting of such of its members as it may designate and may delegate to any such committee such of the functions of the Commission as it thinks fit.

Procedure for
making
schemes.

2.—(1) The Commission shall prepare a draft of a scheme under this Measure after consultation with the consenting body of the cathedral church to which the scheme is to relate.

(2) The Commission shall submit any draft scheme prepared by it to—

- (a) the bishop,
- (b) the Church Commissioners, and
- (c) so far as is practicable, every other person who appears to the Commission to be affected by any provision of the draft scheme,

together with a statement that it will consider any written representations with respect to the draft scheme made before such date as may be specified in the notice, being a date not less than six weeks after the date on which the draft scheme is so submitted.

(3) The Commission shall also publish in one or more newspapers circulating in the diocese to the cathedral church of which the draft scheme relates a notice of the preparation of the draft scheme setting out its objects and specifying the place in the diocese where copies thereof may, on payment of such fee as may be specified in the notice, be inspected and stating that the Commission will consider any written representations with respect to the draft scheme made before such date as may be so specified, being a date not less than six weeks after the date of the publication of the notice.

(4) After the expiration of the period during which representations with respect to the draft scheme may be made under subsection (2) or (3) above the Commission shall—

- (a) send a copy of all the representations duly made to it to the bishop, the consenting body and the Church Commissioners, and
- (b) send a copy of any such representation to any other person who appears to the Commission to be affected by it.

together with a statement that the Commission will consider any written representations made to it before such date as may be specified in the statement, being a date not less than three weeks after the date on which the copy is despatched.

(5) The Commission, having considered any representations duly made to it under this section, may, whether as a result of such representations or otherwise, amend the draft scheme as it thinks expedient.

(6) After considering any such representations and making amendments, if any, in the draft scheme the Commission shall submit the draft scheme to the bishop and the consenting body for their respective consents and shall also send a copy to the Church Commissioners.

(7) On obtaining the consent of the bishop and of the consenting body to the draft scheme, the Commission shall lay the draft scheme before the General Synod, and—

- (a) if before the end of the group of sessions of the Synod at which the draft scheme is laid a resolution is passed directing the Commission not to make the scheme, no further proceedings shall be taken in relation to the draft scheme, but without prejudice to the preparation of a new draft scheme ; or
- (b) if before the end of that group of sessions no such resolution is passed, a copy of the draft scheme shall be signed in accordance with subsection (8) below and the Commission shall thereby make the scheme.

(8) A copy of the draft scheme shall be signed by the chairman of the Commission on its behalf or, in the case of the absence or incapacity of the chairman, by two other members of the Commission nominated by the Commission for that purpose ; and the signing of the copy of the draft scheme by the chairman or by two members nominated as aforesaid shall be conclusive evidence that the provisions of this section relating to the preparation of the scheme have been complied with.

3.—(1) As soon as possible after a scheme is made under section 2 of this Measure the Commission shall submit the scheme for the approval of Her Majesty in Council and shall give notice of such submission to the bishop (unless the see is vacant), the consenting body, the Church Commissioners and any other person who made written representations to the Commission under the foregoing provisions of this Measure ; and the notice shall inform persons who have duly made written representations of their right to appeal to Her Majesty in Council and the time within which such right may be exercised.

Confirmation
of scheme by
Order in
Council.

(2) Any person who has duly made written representations to the Commission under this Measure with respect to the draft scheme may appeal to Her Majesty in Council against the scheme or any provisions thereof by lodging notice of appeal with the clerk of the Privy Council before the expiration of a period of twenty-eight days beginning with the day immediately after the day on which a notice under subsection (1) above is given to that person.

(3) If no notice of appeal is given before the expiration of the said period Her Majesty may by Order in Council confirm the scheme.

(4) If a notice of appeal is given before the expiration of the said period Her Majesty in Council may order that the appeal be heard by the Judicial Committee of the Privy Council, and the Judicial Committee shall make a report thereon and may propose to Her Majesty in Council that the appeal should be allowed or dismissed or that the scheme should be returned to the Commission for reconsideration, and Her Majesty in Council may accordingly—

- (a) allow the appeal, in which case the scheme shall be of no effect, but without prejudice to the making and submission of a new scheme ;
- (b) dismiss the appeal and confirm the scheme ; or
- (c) return the scheme to the Commission for reconsideration.

(5) Where a scheme is returned to the Commission for reconsideration, the Commission may—

- (a) withdraw the scheme ; or
- (b) amend the scheme with the agreement of the bishop and the consenting body ;

and where a scheme is amended in accordance with paragraph (b) above, it shall be signed by the chairman of the Commission on its behalf or, in the case of the absence or incapacity of the chairman, by two other members of the Commission nominated by the Commission for that purpose, and on the signing of the scheme under this subsection the provisions of this section shall apply to that scheme as they apply to a scheme under section 2 of this Measure.

Publication
of notice of
confirmation
of scheme.

4.—(1) As soon as possible after a scheme is confirmed by Order in Council under section 3 of this Measure there shall be published in the London Gazette a notice sufficiently identifying the scheme and stating that it has been confirmed and where a copy of the Order in Council may be obtained.

(2) The Commission shall send a copy of every such Order in Council to the registrar of the diocese in which the cathedral

church to which the scheme relates is situated and the registrar shall file it in the diocesan registry.

(3) An Order in Council made under the said section 3 shall not be a statutory instrument as defined by section 1 of the Statutory Instruments Act 1946 and the provisions of that Act 1946 c. 36. shall accordingly not apply thereto.

5.—(1) Except in so far as any scheme made and confirmed by Order in Council under this Measure, or any provision thereof, is expressed to come into operation on a date, event or contingency specified therein, it shall come into operation on the date on which notice of the confirmation thereof is published in the London Gazette under section 4(1) of this Measure. Supplementary provisions with respect to schemes.

(2) Any scheme prepared and confirmed under section 3 of the Cathedrals Measure 1963 may be varied or revoked by a scheme prepared and confirmed under this Measure and any scheme prepared and confirmed under this Measure may be varied or revoked by a subsequent scheme prepared and confirmed in like manner. 1963 No. 2.

(3) Any Order in Council confirming a scheme under this Measure may revoke any Order in Council confirming a scheme made under the said section 3 or this Measure.

(4) Any Order in Council confirming a scheme under this Measure may vary or revoke any Order in Council made under any Act or Measure in so far as it affects the organisation, property or revenues of a cathedral church, but the amount of any payments required to be made by the Church Commissioners under any such Order shall not be varied by virtue of this subsection unless the consent of the Church Commissioners has been obtained.

6. The Church Commissioners shall have power at their discretion to defray out of their general fund the expenses of the Commission or such part of those expenses as they think fit. Power of Church Commissioners to pay expenses of the Commission.

7. For subsection (6) of section 42 of the Cathedrals Measure 1963 (which provides for the creation by an instrument made by the Cathedrals Commission of an additional canonry for the cathedral church of Christ in Oxford and, in subsection (6), for the revision of such instrument by a Commission appointed by the Standing Committee of the General Synod) there shall be substituted the following subsection:— Revision of instrument creating additional canonry at Oxford. 1963 No. 2.

“(6) Where an application in that behalf is made by the bishop and the dean and canons of the cathedral church

of Christ in Oxford to the Cathedral Statutes Commission appointed under the Cathedrals Measure 1976, the said Commission shall consider the revision of any instrument for the time being in force under this section and may, with the consent of the bishop, the dean and canons of the said cathedral church and the Church Commissioners, make an instrument under this section which may vary or revoke any instrument previously made thereunder and for the time being in force."

Construction,
repeals and
savings.
1963 No. 2.

8.—(1) This Measure shall be construed as one with the Cathedrals Measure 1963, and without prejudice to the foregoing provision, references in that Measure to a scheme made thereunder shall be construed as including references to a scheme made under this Measure.

(2) The following provisions of the said Measure, that is to say, section 1 to 5, 36 and, in section 52(1), the definition of "the Commission", are hereby repealed.

(3) The repeal effected by subsection (2) above shall not affect any scheme prepared and confirmed under section 3 of the said Measure and in force immediately before the passing of this Measure, and any such scheme shall, except so far as it is varied or revoked under this Measure, continue to have effect notwithstanding the repeal.

Extent.

9. This Measure shall apply to every cathedral church in England existing at the passing of this Measure except the cathedral church of Christ in Oxford, and section 7 of this Measure shall apply to that cathedral church.

Citation.

10. This Measure may be cited as the Cathedrals Measure 1976 and the Cathedrals Measure 1963 and this Measure may be cited together as the Cathedrals Measures 1963 and 1976.

Ecclesiastical Judges and Legal Officers Measure 1976

1976 No. 2

A MEASURE passed by the General Synod of the Church of England to regulate the age of retirement from the office of judge of an ecclesiastical court; to make provision for limiting the number of chancellorships to be held by one person; to make fresh provision with respect to the other legal officers of the Church of England; and for purposes connected with the matters aforesaid. [25th March 1976]

1.—(1) In subsection (4) of section 2 of the Ecclesiastical Jurisdiction Measure 1963 (appointment of person to be chancellor of diocese to be without limit of time subject to provisions as to resignation or removal from office), for the words “without limit of time” there shall be substituted the words “for the period beginning with the date of the appointment and ending with the date on which he attains the age of seventy-five years”; and at the end of that subsection there shall be inserted the following paragraph:—

Retiring age
for judges of
ecclesiastical
courts.
1963 No. 1.

“(c) may continue to act as chancellor for the purpose of any proceedings or cause of faculty in the consistory court of the diocese during the course of which he attains the age of seventy-five years as if the date of the conclusion in that court of those proceedings or that cause, as the case may be, were the date on which he attains that age”.

(2) In subsection (5) of section 3 of the said Measure of 1963 (appointment of person to be judge of the Arches Court of Canterbury or the Chancery Court of York to be without limit of time subject to provisions as to resignation or removal from office), for the words “without limit of time” there shall be substituted the words “for a period beginning with the date of the appointment and ending with the date on which that person attains the age of seventy-five years”; and at the end of that subsection there shall be inserted the following paragraph:—

“(c) any judge of either of the said Courts may continue to act as a judge thereof for the purpose of any proceedings in that Court during the course of which he attains the age of seventy-five years as if the date of the conclusion in that Court of those proceedings were the date on which he attains that age”.

(3) The amendments made by subsection (1) above shall not have effect in relation to any person who holds the office of chancellor of a diocese, or, in the case of the diocese of Canterbury, commissary general, at the commencement of this Measure, and the amendments made by subsection (2) above shall not have effect in relation to any person who holds the office of judge of either of the Courts mentioned in that subsection at the said commencement.

Number of
chancellorships
to be held by
one person
may be limited.
1963 No. 1.

2. After section 2 of the Ecclesiastical Jurisdiction Measure 1963 there shall be inserted the following section:—

“Number of
chancellor-
ships to be
held by
one person
may be
limited.”

2A.—(1) Regulations made by the House of Bishops of the General Synod may make provision with respect to the maximum number of chancellorships of dioceses which any one person may hold.

(2) Nothing in any regulation made under this section shall be taken as prohibiting any person who at the date on which the regulation comes into force holds more than the maximum number of chancellorships prescribed by the regulation from continuing to hold such offices.

(3) Regulations made under this section shall be laid before the General Synod and shall not come into operation until they have been approved by the General Synod.

1946 c. 36.

(4) The Statutory Instruments Act 1946 shall apply to any regulations approved under subsection (3) of this section as if they were a statutory instrument and were made when so approved, and as if this Measure were an Act providing that any such regulations should be subject to annulment in pursuance of a resolution of either House of Parliament.”

Office of
registrar of a
province.

3.—(1) For each of the provinces there shall be an office the holder of which shall be known as the registrar of the province of Canterbury or the registrar of the province of York, as the case may be, and the holder of that office shall also be the legal adviser to the archbishop of the province.

(2) The registrar of a province shall perform the functions conferred or imposed by or under any enactment or Canon on such registrar or on the registrar of the provincial court and the functions previously performed by the archbishop's legal secretary.

(3) The registrar of a province shall be appointed by the archbishop of the province, but before making any such appointment

the archbishop shall consult the standing committee of the General Synod.

(4) The office of registrar of a province may be held by two persons jointly, but either of those persons may perform any of the functions mentioned in subsection (2) above.

4.—(1) For every diocese there shall be an office the holder of which shall be known as the registrar of the diocese, and the holder of that office shall also be the legal adviser to the bishop of the diocese.

(2) The registrar of a diocese shall perform the functions conferred or imposed by or under any enactment or Canon on such registrar or on the registrar of the consistory court of the diocese and the functions previously performed by the bishop's legal secretary.

(3) The registrar of a diocese shall be appointed by the bishop of the diocese, but before making any such appointment the bishop shall consult the bishop's council and standing committee of the diocesan synod.

(4) The office of registrar of a diocese may be held by two persons jointly, but either of those persons may perform any of the functions mentioned in subsection (2) above.

5.—(1) Regulations made by the House of Bishops of the General Synod may make provision with respect to the maximum number of registrarships, whether of a province or of a diocese, which any one person may hold.

Provisions with respect to number of registrarships to be held by one person, vacation of office, etc.

(2) Nothing in any regulation made under subsection (1) above shall be taken as prohibiting any person who at the date on which the regulation comes into force holds more than the maximum number of registrarships prescribed by the regulation from continuing to hold such offices.

(3) A person holding the office of registrar of a province or registrar of a diocese shall vacate that office on the date on which he attains the age of seventy years or, subject to subsection (4) below, such earlier age as may be prescribed by regulations made by the House of Bishops of the General Synod.

(4) No regulation made under subsection (3) above shall apply to any person who at the date on which the regulation comes into force is the holder of an office to which the regulation relates.

(5) The registrar of a province or of a diocese may resign his office by instrument in writing under his hand addressed to, and served on, the archbishop of the province or the bishop

of the diocese, as the case may be, and the instrument shall specify the date, being a date not less than twelve months after the date of service of the instrument, on which the resignation is to take effect.

(6) Subject to subsection (7) below, the appointment of a person as registrar of a province or of a diocese may be terminated by an instrument in writing under the hand of the archbishop of the province or the bishop of the diocese, as the case may be, addressed to, and served on, that person, and the instrument shall specify the date, being a date not less than twelve months after the date of service of the instrument, on which the appointment is to terminate.

(7) The power conferred on an archbishop by subsection (6) above shall be exercisable only with the consent of the other archbishop, and the power thereby conferred on the bishop of a diocese shall be exercisable only with the consent of the archbishop of the province.

Transitional
provisions
supplementary
to ss. 3 to 5.

6.—(1) Nothing in sections 3 to 5 of this Measure shall affect the tenure of office or any right of any person who at the commencement of this Measure holds the office of registrar of a province or registrar of a diocese.

(2) Subject to subsection (3) below, no appointment to the office of registrar of a province shall be made under the said section 3, and no appointment to the office of registrar of a diocese shall be made under the said section 4, as long as the person who at the said commencement is the holder of that office continues to hold it.

(3) Where at the said commencement one person holds the office of registrar of a diocese and another the office of legal secretary to the bishop of that diocese, then, if the last mentioned office becomes vacant thereafter before that first mentioned, either the person who at the date of the occurrence of the vacancy is, and at the said commencement was, the registrar of the diocese shall be appointed to that office under the said section 4 or another person shall be appointed by the bishop of that diocese to act as his legal secretary until the office of registrar of that diocese becomes vacant.

(4) On the making of an appointment under the said section 3 to the office of registrar of a province or under the said section 4 to the office of registrar of a diocese, the office of legal secretary to the archbishop of that province or, as the case may be, of legal secretary to the bishop of that diocese shall be abolished.

7.—(1) No appointment to the office of official principal of an archdeacon or to the office of registrar of an archdeacon shall be made after the commencement of this Measure.

Abolition of
offices of
archdeacon's
official
principal and
archdeacon's
registrar.

(2) Where after the said commencement either of the offices mentioned in subsection (1) above becomes vacant, the duties previously performed by the holder of that office shall be performed, in the case of the office of official principal, by the chancellor, and, in the case of the office of registrar, by the registrar, of the diocese in which the archdeaconry in question is situated.

(3) Subsection (2) above shall have effect in relation to the diocese of Canterbury with the substitution, for the reference to the chancellor, of a reference to the commissary general.

8.—(1) Regulations made by the House of Bishops under section 5 of this Measure shall be laid before the General Synod, and shall not come into operation until they have been approved by the General Synod.

Provisions with
respect to
regulations
under s. 5.

(2) The Statutory Instruments Act 1946 shall apply to any regulations approved by the General Synod under subsection (1) above as if they were a statutory instrument and were made when so approved, and as if this Measure were an Act providing that any such regulations should be subject to annulment in pursuance of a resolution of either House of Parliament.

9.—(1) This Measure may be cited as the Ecclesiastical Judges and Legal Officers Measure 1976.

Citation,
commence-
ment and
extent.

(2) This Measure shall come into operation at the expiration of a period of one month beginning with the day on which it is passed.

(3) This Measure shall extend to the provinces of Canterbury and York except the Channel Islands and the Isle of Man, but if an Act of Tynwald so provides, sections 1 and 2 of this Measure shall extend to the Isle of Man subject to such exceptions and modifications, if any, as may be specified in that or any subsequent Act of Tynwald.

Church of England (Miscellaneous Provisions) Measure 1976

1976 No. 3

A MEASURE passed by the General Synod of the Church of England to enable provision to be made by Canon with respect to certain declarations made and subscribed and other matters required on ordination and admission to office in the Church of England and to repeal the enactments relating to those matters; to enable provision to be made by Canon with respect to licensing of assistant curates for fixed terms; to replace section 85 of the Pastoral Measure 1968; to dispense with periodical episcopal visitations of cathedrals; to amend section 1 of the Benefices (Sequestrations) Measure 1933; to amend the law relating to the burial of certain persons in parish burial grounds; to repeal section 13 of the Burnley Rectory Act 1890; and for purposes connected with the matters aforesaid. [15th November 1976]

Provision by Canon with respect to declarations and other matters required on ordination and admission to office.

1865 c. 122.

1.—(1) Subject to subsection (2) below, it shall be lawful for the General Synod to make provision by Canon for dispensing with or modifying any formal procedure or document required on the occasion of ordination or admission to any office in the Church of England, and in particular for dispensing with the making of the declarations heretofore prescribed by sections 2 and 3 of the Clerical Subscription Act 1865 (declarations known as “the declaration against simony” and “the stipendiary curate’s declaration”), the reading of the form called *Si Quis* and the certification thereof, the exhibiting of Letters Testimonial, and the issue of deeds of institution and Letters Mandatory and mandates for induction.

1974 No. 2.

(2) Subsection (1) above shall not apply in relation to any declaration of assent to the doctrine of the Church of England which by any Canon made in pursuance of section 2 of the Church of England (Worship and Doctrine) Measure 1974 any person is required to make on any occasion.

1533 c. 19.

(3) Section 3 of the Submission of the Clergy Act 1533 (which provides that no Canons shall be contrary to the Royal Prerogative or the customs, laws or statutes of this realm) shall not

apply to any rule of ecclesiastical law relating to any matter for which provision may be made by Canon in pursuance of this section.

(4) In this section "ordination" includes consecration as a bishop; and "admission" to an office includes every step in the procedure by which a person comes into full possession of the office.

(5) The power to make Canons in pursuance of this section shall be exercisable before the day on which this Measure comes into operation, but no such Canon shall come into operation before that day.

(6) If a Canon made in pursuance of this section dispenses with the making of the declarations mentioned in subsection (1) above, then, on the day on which that Canon comes into operation the enactments specified in Part I of the Schedule to this Measure shall be repealed to the extent specified in column 3 of that Schedule.

2.—(1) It shall be lawful for the General Synod to make provision by Canon for empowering the bishop of a diocese—

Provision by
Canon with
respect to
licensing of
assistant curate
for fixed term.

(a) to grant a licence to an assistant curate to minister in any parish or conventional district in his diocese for such term of years as may be specified in the licence; and

(b) to revoke such a licence summarily and without further process before the expiration of the term so specified for such cause and subject to such conditions as the Canon may provide.

(2) Where in pursuance of a Canon made under subsection (1) above a licence is granted to an assistant curate to minister in a parish or conventional district for a term of years specified in the licence—

(a) the incumbent of the benefice in which that curate is licensed to minister may exercise his right under and in accordance with section 95 of the Pluralities Act 1838 to give that curate notice to quit his curacy before the expiration of that term; and

1838 c. 106.

(b) that curate may quit his curacy before the expiration of that term but only in accordance with section 97 of that Act.

(3) The power to make Canons in pursuance of this section shall be exercisable before the day on which this Measure comes into operation, but no such Canon shall come into operation before that day.

3.—(1) If the bishop of a diocese considers that he will be unable to carry out any or all the functions to which this section applies by reason of illness or absence from his diocese, he may appoint by an instrument under his hand a suffragan bishop, assistant bishop or archdeacon of the diocese to perform that or those functions, as the case may be, for a period specified in the instrument or for the period of his illness or absence.

(2) Where a see is vacant, or the bishop of a diocese is unable by reason of illness or absence from his diocese to make an appointment under subsection (1) above, the archbishop of the province may appoint by an instrument under his hand a suffragan bishop, assistant bishop or archdeacon of the diocese to perform any or all of the functions to which this section applies for a period specified in the instrument, and if that archbishop is unable by reason of illness or absence from his province to make an appointment under this subsection or if the see of that archbishop is vacant, the appointment may be made by the senior bishop of the province to which the diocese in question belongs.

(3) Where a see is vacant any function of the bishop of the diocese to which this section applies shall be performed by the person who is duly appointed under subsection (2) above to perform that function or, if no person is so appointed, by the guardian of the spiritualities.

(4) A power of appointment under this section may be exercised by the appointment of two or more persons qualified for such appointment and the division among them, whether territorially or otherwise, of the function or functions to be performed.

(5) Where any function to which this section applies requires the application of the bishop's seal to a document, the document shall be issued as a deed executed by the person authorised by virtue of this section to perform that function.

(6) A statement in a document issued in the performance of any such function that the person by whom the document is signed or executed has been duly appointed under this section to perform that function shall be conclusive evidence of that fact.

(7) This section applies to functions of a bishop of a diocese in relation to matters arising under—

- (a) the Ecclesiastical Leasing Acts ;
- (b) Schedule 2 to the Loans (Incumbents of Benefices) Amendment Act 1918 ;
- (c) the Parsonages Measure 1938 ;

- (d) section 4 of the Queen Anne's Bounty (Powers) 1939 No. 1.
Measure 1939 ;
- (e) the New Parishes Measure 1943 ; 1943 No. 1.
- (f) the Diocesan Stipends Funds Measure 1953 ; 1953 No. 2.
- (g) Part III of the Church Property (Miscellaneous Provisions) Measure 1960 ; 1960 No. 1.
- (h) section 20(2) of the Cathedrals Measure 1963 ; 1963 No. 2.
- (i) the Pastoral Measure 1968 ; 1968 No. 1.
- (j) the Repair of Benefice Buildings Measure 1972 ; 1972 No. 2.

and to functions of the bishop of a diocese in relation to transfers of patronage rights to bishops under the Church Patronage Act 1870 c. 39.

(8) For the purpose of subsection (2) above the seniority of diocesan bishops shall be determined in accordance with the following rules:

- (a) the Bishops of London and Winchester (in that order) shall be treated as senior to all the other diocesan bishops in the province of Canterbury ;
- (b) the Bishop of Durham shall be treated as senior to all the other diocesan bishops in the province of York ;
- (c) subject to the two foregoing rules, the seniority of comprovincial diocesan bishops as between each other shall be determined by reference to the length of time that each of them has held office as diocesan bishop in either province without interruption from any cause.

(9) The enactments specified in Part II of the Schedule to this Measure are hereby repealed to the extent specified in column 3 of that Schedule.

(10) Any appointment made under any provision of section 85 of the Pastoral Measure 1968, and in force immediately before the commencement of this Measure, shall not be invalidated by the repeal of that section by this Measure but shall have effect as if made under the corresponding provision of this section.

4. At the end of section 6 of the Cathedrals Measure 1963 (relationship of bishops to their cathedral churches) there shall be added the following paragraph :—

“ This section shall not be taken to require the statutes of a cathedral church to provide for periodical episcopal visitations of that church, and notwithstanding anything in

Periodical episcopal visitations of cathedrals not obligatory.
1963 No. 2.

any such statutes or in any rule of ecclesiastical law it shall not be obligatory for a bishop to visit the cathedral church of his diocese at regular intervals."

Remuneration
for
performance
of occasional
ecclesiastical
duties in
vacant
benefices.
1933 No. 4.

5. In section 1(1) of the Benefices (Sequestrations) Measure 1933 (which empowers bishops to determine the amount of the remuneration to be paid to clerks in Holy Orders who perform occasional ecclesiastical duties in vacant benefices), for the words from "to clerks" to the end there shall be substituted the words "for the performance of occasional ecclesiastical duties in any benefice during a vacancy therein and, where any such duty is performed by a person other than a clerk in Holy Orders, the person to whom the remuneration is to be paid".

Amendment of
law relating
to burials in
parish burial
ground.

6.—(1) A person who apart from this subsection has no right of burial in the churchyard or other burial ground of a parish shall have a right of burial therein if at the date of his death his name is entered on the church electoral roll of the parish.

(2) No person, other than a person having a right of burial in the churchyard or other burial ground of a parish, shall be buried therein without the consent of the minister of the parish, but in deciding whether to give such consent the minister shall have regard to any general guidance given by the parochial church council of the parish with respect to the matter.

(3) In this section "minister", in relation to a parish, means the incumbent of the benefice to which the parish belongs or, if the benefice is vacant, the minister acting as priest in charge of the parish or the curate licensed to the charge of the parish or, if there is no such minister or curate, the rural dean of the deanery in which the parish is.

Repeal of s. 13
of Burnley
Rectory Act
1890.
1890 c. cxxiii.

7. Notwithstanding anything in section 13 of the Burnley Rectory Act 1890 (which in effect provides for the see of the suffragan bishop of Burnley and the rectory of Burnley to be held together by the same person), the incumbent of the benefice consisting of the rectory of Burnley in the diocese of Blackburn may resign that benefice without resigning the office of suffragan bishop of Burnley, and on the date on which that benefice first becomes vacant after the commencement of this Measure the said section 13, and section 13 of the Bishopric of Blackburn Measure 1923 (which amended the said section 13), shall be repealed.

1923 No. 4.

Citation,
construction
commencement
and extent.

8.—(1) This Measure may be cited as the Church of England (Miscellaneous Provisions) Measure 1976.

(2) Any reference in this Measure to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment.

(3) This Measure shall come into operation at the expiration of a period of one month beginning with the date on which it is passed.

(4) This Measure shall extend to the provinces of Canterbury and York except that it shall only extend to the Isle of Man and the Channel Islands in accordance with the following provisions of this section.

(5) Sections 1 and 2 shall extend to the Isle of Man and sections 3 and 6 may by Act of Tynwald be extended to the Isle of Man with such exceptions, adaptations and modifications as may be specified in such Act.

(6) This Measure may be applied to the Channel Islands, or Legislation) Measures 1931 and 1957, in accordance with those either of them, as defined in the Channel Islands (Church Measures.

Sections 1. 3.

SCHEDULE

REPEALS

PART I

REPEALS UNDER SECTION 1 OF THIS MEASURE

Session and Chapter	Short Title	Extent of Repeal
28 & 29 Vict. c. 122.	The Clerical Subscription Act 1865.	Sections 2 and 3. In section 5, the words from "make" to "simony, and".
61 & 62 Vict. c. 48.	The Benefices Act 1898.	Sections 6 and 10. The Schedule.
14 & 15 Geo. 5 No. 1.	The Benefices Act 1898 (Amendment) Measure 1923.	Section 5.
15 & 16 Geo. 6 & 1 Eliz. 2. c. xxxviii.	The City of London (Guild Churches) Act 1952.	In section 8(4), the words from "make" to "church". In section 14(1), the words from "save" to the end.

PART II

REPEALS UNDER SECTION 3 OF THIS MEASURE

Session and Chapter	Short Title	Extent of Repeal
26 Geo. 5 & 1 Edw. 8. No. 5.	The Ecclesiastical Commissioners (Powers) Measure 1936.	Section 8(2).
1 and 2 Geo. 6. No. 3.	The Parsonages Measure 1938.	Section 14.
1 & 2 Eliz. 2. No. 2.	The Diocesan Stipends Funds Measure 1953.	In section 8(1), in the definition of "the bishop", the words from "(including" to the end.
7 & 8 Eliz. 2. No. 2.	The Vacancies in Sees Measure 1959.	Sections 3 and 7(2).
8 & 9 Eliz. 2. No. 1.	The Church Property (Miscellaneous Provisions) Measure 1960.	Section 26.
1968 No. 1.	The Pastoral Measure 1968.	Section 85. In section 90(1), in the definition of "the bishop", the words from "and includes" to the end.
1972 No. 2.	The Repair of Benefice Buildings Measure 1972.	Section 28.

Endowments and Glebe Measure 1976

1976 No. 4

A MEASURE passed by the General Synod of the Church of England to make fresh provision with respect to the means by which the clergy and certain lay persons engaged in the cure of souls are remunerated; to transfer glebe land to Diocesan Boards of Finance; to make provision with respect to the powers and duties of such Boards in relation to such land; to restrict the letting of parts of parsonage houses and to make other provision with respect to such houses; to amend the Diocesan Stipends Funds Measure 1953; to amend the law relating to sequestrations; to amend the law relating to the liability to repair certain chancels; and for purposes connected with the matters aforesaid.
[22nd November 1976]

Payments by Church Commissioners towards stipends of certain clergy, etc.

1.—(1) Where immediately before the appointed day a benefice has endowment income, the general fund of the Commissioners shall stand charged as from that day with the payment towards the stipend of the incumbent of that benefice of an annuity the amount of which shall be fixed in accordance with subsection (2) below.

Annuities to be paid by Commissioners towards stipends of certain incumbents

(2) Subject to section 3 of this Measure, the amount of the annuity payable in respect of any benefice under subsection (1) above shall be either the amount of the net annual endowment income of the benefice immediately before the appointed day or £1,000, whichever is the less.

(3) Where by means of a pastoral scheme which comes into operation on or after the appointed day a new benefice is created by the union of two or more benefices, then, if—

(a) in the case of a scheme which comes into operation on the appointed day, an annuity would but for the scheme have been payable under subsection (1) above in respect of any of those benefices, or

- (b) in the case of any other scheme, an annuity was immediately before the scheme comes into operation payable under this section in respect of any of those benefices,

the general fund of the Commissioners shall stand charged as from the day on which the scheme comes into operation with the payment towards the stipend of the incumbent of the new benefice of an annuity the amount of which shall be fixed in accordance with subsection (4) below.

(4) The amount of the annuity payable in respect of any new benefice under subsection (3) above shall be either—

- (a) the aggregate of the annuities which would have been or were payable as mentioned in subsection (3) above in respect of the benefices by the union of which the new benefice was created, or

(b) £1,000,

whichever is the less.

(5) The annuity with the payment of which the general fund of the Commissioners stands charged under subsection (1) or (3) above is hereafter in this Measure referred to as “the guaranteed annuity”.

(6) The guaranteed annuity in respect of any benefice shall not be payable during a vacancy in the benefice.

Annual personal grants to be made by Commissioners to certain incumbents.

2.—(1) Where the guaranteed annuity in respect of any benefice is £1,000, then, if the net annual endowment income of the benefice immediately before the appointed day exceeds that sum, the person who immediately before that day is the incumbent of that benefice shall so long as he continues in that office be entitled to receive from the Commissioners an annual personal grant of a sum equal to the amount of the excess.

(2) Where by means of a pastoral scheme which comes into operation on or after the appointed day a new benefice is created by the union of two or more benefices, then, if—

- (a) the person who becomes the incumbent of the new benefice was immediately before the scheme comes into operation the incumbent of any of the constituent benefices, and

- (b) that person, as the incumbent of any of the constituent benefices, would have been or was entitled to an annual personal grant under subsection (1) above,

he shall be entitled to receive from the Commissioners an annual personal grant of the same amount so long as he holds the office of incumbent of the new benefice created by the scheme.

3.—(1) Where on or after the appointed day two or more benefices are held in plurality, then, so long as they continue to be so held, they shall be treated for the purposes of section 1 of this Measure as if they constituted one benefice and, accordingly, the amount of the guaranteed annuity payable towards the stipend of the incumbent of those benefices shall be either the aggregate of the guaranteed annuities in respect of those benefices or £1,000, whichever is the less.

Provisions with respect to benefices held in plurality.

(2) Where immediately before the appointed day two or more benefices are held in plurality, section 2(1) of this Measure shall apply in relation to the incumbent of those benefices as if—

- (a) those benefices constituted one benefice ;
- (b) the guaranteed annuity payable towards the stipend of the incumbent of those benefices in pursuance of subsection (1) above were the guaranteed annuity in respect of that one benefice ; and
- (c) the aggregate of the net annual endowment incomes of those benefices were the net annual endowment income of that one benefice.

(3) Where the incumbent of benefices held in plurality is entitled by virtue of subsection (2) above to an annual personal grant under section 2(1) of this Measure, then, if on or after the appointed day—

- (a) he resigns one or more but not all of the benefices so held by him, or
- (b) one or more but not all of those benefices is declared vacant under the Incumbents (Vacation of Benefices) 1975 No. 3. Measure 1975,

he shall, so long as he continues to be the incumbent of the other benefice or benefices retained by him, be entitled to receive from the Commissioners under the said section 2(1) an annual personal grant of such amount as may be determined by the Commissioners after consultation with the bishop of the diocese to which that benefice belongs or those benefices belong.

4.—(1) Schemes under this section may be made by the Commissioners and the provisions of Schedule 1 to this Measure shall have effect with respect to the making and confirmation of such schemes and other matters relating thereto.

Provisions with respect to benefices entitled to benefits under certain private or local Acts.

(2) A scheme under this section may provide—

- (a) that any property vested in the Commissioners under or by virtue of any Act listed in Part I of Schedule 2 to this Measure and section 2 of the Church Commissioners Measure 1947 on trusts to apply the income

and capital thereof in the manner directed by that Act shall on and after the date on which the scheme comes into operation be held by the Commissioners as part of their corporate property freed and discharged from those trusts ;

- (b) that any property for the time being vested in any other persons under or by virtue of the Acts listed in Part II of that Schedule on trusts to apply the income and capital thereof in the manner directed by those Acts shall on the said date be transferred to, and by virtue of the scheme and without any conveyance or other assurance vest in, the Commissioners to be held by them as part of their corporate property freed and discharged from those trusts.

(3) Where it is proposed by a scheme under this section to make provision in accordance with paragraph (a) or (b) of sub-section (2) above, the scheme shall also provide that where by virtue of the Act to which the scheme relates the incumbent of a benefice is immediately before the date on which the scheme comes into operation entitled to be paid by the Commissioners or other the trustees for the purposes of that Act an annual sum in respect of, or in augmentation of, his stipend, sections 1 and 2(1) of this Measure shall apply in relation to that benefice and the incumbent thereof—

- (a) as if that sum had formed part of the net annual endowment income of that benefice immediately before the appointed day ; and

- (b) as if the second reference in section 1(1) and in section 2(1) to the appointed day were a reference to the date on which the scheme comes into operation ;

and accordingly, but subject to section 1(6) of this Measure, as from the said date a guaranteed annuity in respect of that benefice shall be payable or, as the circumstances require, the amount of the guaranteed annuity then payable in respect of that benefice shall be increased, and if at that date the benefice is full and the incumbent thereof then becomes, or is, entitled to an annual personal grant under section 2 of this Measure, that grant shall be payable, or the amount thereof shall be increased, as the case may be, as from that date.

(4) A scheme under this section may contain such other provisions, including provision for the making of payments for ecclesiastical purposes out of the Commissioners' general fund or for charging that fund with payments for those purposes, as appear to the Commissioners to be necessary or expedient having regard to the provisions of this Measure and of the Act to which the scheme relates.

(5) A scheme under this section may amend or repeal any provision of the Act to which the scheme relates if it appears to

the Commissioners that that provision is inconsistent with or rendered unnecessary by the provisions of the scheme and may repeal any other provision of that Act which appears to the Commissioners to be obsolete or spent.

5. The guaranteed annuity in respect of any benefice and the annual personal grant, if any, to which the incumbent of a benefice is entitled under section 2 of this Measure shall accrue from day to day and shall be payable (subject to any apportionment) by such instalments and on such days as the Commissioners may determine.

Provisions as to payment of guaranteed annuity and personal grant.

6.—(1) Subject to subsection (2) below, the Commissioners may from time to time pay out of their general fund such sums as they think fit towards the stipend of any person holding the office of archdeacon.

Payments by Commissioners towards stipends of archdeacons.

(2) Any person who immediately before the appointed day holds the office of archdeacon shall so long as he continues in that office be entitled to receive from the Commissioners an annual grant of a sum not less in amount than that payable to him by the Commissioners as endowment income of the archdeaconry immediately before that day whether in exercise of their powers under the Archdeacons (Augmentation) Measure 1953 No. 4. 1953 or in the discharge of any obligation imposed on them by or under any other enactment or by any trust.

7.—(1) Subject to the provisions of this section, what for the purposes of this Measure—

Provisions for determining what constitutes endowments, etc.

(a) constitutes the endowments or endowment income of a benefice; or

(b) is the amount of the net annual endowment income of a benefice immediately before the appointed day; or

(c) is the amount of the endowment income of an archdeaconry immediately before that day,

shall be conclusively determined by the Commissioners.

(2) Any property held by the Commissioners on trust for the purpose of providing or augmenting the stipend or other emoluments of the incumbent of a benefice shall be treated as not constituting part of the endowments of that benefice for the purposes of this Measure if—

(a) the trusts on which the property is so held provide that at the discretion of the trustees the property or the income arising therefrom may be applied for another purpose or provide that on the occurrence of a specified event or the failure to comply with a specified condition the property or the said income shall be

- applied for another purpose or provide for a gift over of the property to persons, other than the Commissioners, on such an occurrence or failure ; or
- (b) the property is held by the Commissioners under or by virtue of any Act listed in Part I of Schedule 2 to this Measure.

The provisions of this subsection are without prejudice to the provisions of any scheme made under section 4 of this Measure in relation to property to which paragraph (b) above applies.

(3) Any property held by persons other than the Commissioners on trust for the purpose of providing or augmenting the stipend or other emoluments of the incumbent of a benefice shall be treated as not constituting part of the endowments of that benefice for the purposes of this Measure.

(4) Where in accordance with a provision of a scheme or order made under any enactment any sum consisting of the whole or part of the endowment income of a benefice is immediately before the appointed day appropriated or payable to, or carried to the credit of, a diocesan stipends fund, the amount of that sum shall be treated for the said purposes as not being part of the endowment income of that benefice immediately before that day.

(5) Where in accordance with a provision of a scheme or order made under any enactment relating to two or more benefices which are held in plurality or are to be so held by virtue of the scheme or order any sum consisting of part of the aggregate of the endowment incomes of those benefices is immediately before the appointed day appropriated or payable to, or carried to the credit of, a diocesan stipends fund, then, so long as those benefices continue to be so held, the amount of that sum shall be treated for the said purposes as not being part of the endowment income of any of those benefices immediately before that day.

1960 No. 1. (6) Any sum which immediately before the appointed day is payable to the incumbent of a benefice in accordance with section 16(2) of the Church Property (Miscellaneous Provisions) Measure 1960 (payments consequential on the extinguishment of tithe rentcharge) shall be treated for the said purposes as not being part of the endowment income of that benefice immediately before that day.

(7) Subsection (2) above shall apply in relation to any property held by the Commissioners on trust for the purpose of providing or augmenting the stipend or other emoluments of the holder of an archdeaconry with the substitution, for references to a benefice and the incumbent thereof, of references to an archdeaconry and the holder thereof.

(8) In this section "endowments", in relation to any benefice includes an excluded part of the parsonage house of the benefice.

8.—(1) Subject to subsection (2) below, as from the appointed day the Commissioners shall allocate to the income account of the diocesan stipends fund of each diocese an annual sum equal in amount to the aggregate of the following amounts, that is to say:—

Payments by Commissioners towards stipends, etc. of curates and lay assistants.

- (a) the amount of any annuities or other annual payments which immediately before that day are applicable by the Commissioners towards the stipends or other emoluments of assistant curates or clerical or lay assistants engaged in the cure of souls in particular parishes in that diocese and with the payment of which the general fund of the Commissioners stands charged immediately before that day ;
- (b) the amount of the income which immediately before that day is so applicable and which arises from property held by the Commissioners in pursuance of any enactment ; and
- (c) the amount of the income arising from any property which immediately before that day is held by the Commissioners on trusts by virtue of which that income is so applicable unless those trusts provide that at the discretion of the trustees the property or the income arising therefrom may be applied for another purpose or provide that on the occurrence of a specified event or the failure to comply with a specified condition the property or the said income shall be applied for another purpose or provide for a gift over of the property to persons, other than the Commissioners, on such an occurrence or failure.

(2) Subsection (1) above shall not apply in relation to property held by the Commissioners under or by virtue of any Act listed in Part I of Schedule 2 to this Measure.

(3) As from the appointed day the income account of each diocesan stipends fund shall stand charged with the payment towards the stipend or other emoluments of any assistant curate or clerical or lay assistant while engaged in the cure of souls in any parish in the diocese of an annual sum of the same amount as that which but for the provisions of sections 10 and 11 of this Measure would be applicable by the Commissioners for augmenting the stipends or other emoluments of assistant curates or clerical or lay assistants in that parish.

(4) Any question as to the amount of any sum to be allocated to a diocesan stipends fund under subsection (1) above, or as to the amount of any sum with the payment of which any such fund stands charged by virtue of subsection (3) above, shall be conclusively determined by the Commissioners.

*Application of moneys credited to income
account of diocesan stipends fund*

Application
of moneys
credited to
income
account of
diocesan
stipends fund.
1953 No. 2.

9.—(1) For section 5 of the Diocesan Stipends Funds Measure 1953 there shall be substituted the following section:—

“ 5.—(1) Subject to any charges imposed on the income of the diocesan stipends fund of a diocese by any enactment or any scheme or order made thereunder, moneys standing to the credit of the income account of that fund shall be applied—

(a) in providing or augmenting the stipends or other emoluments of incumbents, assistant curates licensed under seal and other persons who are declared by the bishop to be engaged in the cure of souls within the diocese; and

(b) in defraying the expenses incurred by the sequestrators of any benefice in the diocese in the discharge of their functions.

(2) The said moneys shall be so applied in accordance with directions from time to time given, with the concurrence of the Diocesan Board of Finance, by the bishop or a person duly authorised for that purpose by him.

(3) Any directions which the bishop or the person so authorised gives under subsection (2) above with respect to the application of the said moneys in providing or augmenting the stipends or other emoluments of the persons mentioned in subsection (1) above shall be consistent with any directions given by the Commissioners, in the exercise of their functions as the Central Stipends Authority, with respect to the forms and levels of the pay of those persons.

(4) Subject to subsection (3) above, the bishop or the person so authorised shall, in determining the directions to be given under subsection (2) above, have regard to any advice given by the Commissioners with respect to the application of the said moneys.”

Extinguishment of certain charges, trusts, etc.

Extinguish-
ment of
certain
charges, etc.

10.—(1) On the appointed day the general fund of the Commissioners shall be freed and discharged from the payment to any benefice (whether then existing or to be created), or in augmentation of the income of any archdeaconry, or towards the stipend or other emoluments of any assistant curate or clerical or lay assistant, of any annual sum of money with the payment of which that fund stands charged immediately before that day whether in pursuance of any enactment or otherwise.

(2) On the appointed day the general fund of the Commissioners shall be freed and discharged from the payment of any

annual sum of money with the payment of which that fund stands charged immediately before that day, being an annual sum which in accordance with a provision of a scheme or order made under any enactment is immediately before that day appropriated or payable to, or carried to the credit of, a diocesan stipends fund and which but for that provision would be payable to a benefice.

(3) Subject to subsection (4) below, where before the appointed day any capital sum of money was appropriated or credited by the Commissioners, in pursuance of any enactment or otherwise, to a benefice (whether then existing or to be created) or an archdeaconry or as a fund for making payments towards the stipends or other emoluments of assistant curates or clerical or lay assistants, then, on that day the appropriation or credit shall be cancelled, and as from that day the said sum shall be held by the Commissioners as part of their corporate property freed and discharged from any trust or charge in favour of any benefice or the incumbent thereof or an archdeaconry or such curates or assistants but subject to any other charge to which immediately before that day the sum so appropriated or credited was subject.

(4) Subsection (3) above shall not apply in relation to any sum of money paid to the Commissioners under section 1(5) of the Parsonages Measure 1938 (moneys arising from sale or exchange of parsonage house, etc.) and held by them at the appointed day to be applied and disposed of in accordance with section 5 of that Measure.

11.—(1) Subject to subsections (3) and (4) below, where immediately before the appointed day any property is held by the Commissioners on trust for the purpose of providing or augmenting the stipend or other emoluments of any one or more of the following persons, that is to say—

- (a) the incumbent of a benefice,
- (b) the holder of an archdeaconry, and
- (c) an assistant curate or clerical or lay assistant in a parish,

the property shall on and after that day be held by the Commissioners as part of their corporate property freed and discharged from that trust.

(2) Subject to subsections (3) and (4) below, where any property is held by any other persons on trust for the purposes mentioned in subsection (1) above, the trustees may on or after the appointed day, with the consent of the Charity Commissioners, transfer the property to the Commissioners to be held by them as part of their corporate property freed and discharged from that trust.

(3) Subsections (1) and (2) above shall not apply in relation to any property held on trusts which provide that at the discretion of the trustees the property or the income arising therefrom may be applied for a purpose other than that mentioned in subsection (1) above or provide that on the occurrence of a specified event or the failure to comply with a specified condition the property or the said income shall be applied for a purpose other than that so mentioned or provide for a gift over of the property to persons, other than the Commissioners, on such an occurrence or failure.

(4) Subsection (1) above shall not apply in relation to property held by the Commissioners under or by virtue of any Act listed in Part I of Schedule 2 to this Measure and subsection (2) above shall not apply in relation to property held by any person under or by virtue of the Acts listed in Part II of that Schedule.

(5) The Commissioners shall allocate to the capital account of the diocesan stipends fund of the appropriate diocese—

(a) any property which by virtue of subsection (1) above is to be held by them freed and discharged from the trusts on which it was previously held, except any property so held on trusts directed to the benefit of a particular benefice, a particular archdeaconry or a particular parish; and

(b) any property which is transferred to the Commissioners under subsection (2) above.

The appropriate diocese for the purpose of this subsection is the diocese to which any benefice, archdeaconry or parish which is qualified to benefit from the trust in question belongs, and where there are two or more such benefices, archdeacons or parishes belonging to different dioceses, the Commissioners may apportion the property between those dioceses or such of them, and in such manner, as the Commissioners may determine and allocate part of the property accordingly.

Provisions
with respect
to certain
rentcharges,
tithes, corn
rents, etc.

12.—(1) Any rentcharge, tithe or payment in lieu of tithe which immediately before the appointed day is attached to a benefice and to which this subsection applies shall on that day be transferred to, and by virtue of this subsection vest in, the Commissioners for all the interest therein so attached freed and discharged from any trust or charge in favour of any benefice or the incumbent thereof and from any liability which falls within section 39 of this Measure but subject to any other charge or liability affecting that interest, and shall be held by the Commissioners as part of their corporate property.

(2) Subsection (1) above applies to any rentcharge, tithe or payment in lieu of tithe—

(a) which under any Act or award is directed to be collected for the benefit of the benefice by churchwardens or any

other person and not by the incumbent of the benefice ;
or

- (b) which arises in so much of any ecclesiastical parish situated partly within and partly without the City of London as is situated without that City.

(3) Any rentcharge, corn rent, tithe or other payment attached to a benefice which immediately before the appointed day is vested in the Commissioners by virtue of section 3 or 14 of the Tithe Act 1925 and section 2 of the Church Commissioners Measure 1947 for all the interest therein so attached shall, on and after that day, be held by them as part of their corporate property freed and discharged from any trust or charge in favour of any benefice or the incumbent thereof and from any liability which falls within section 39 of this Measure but subject to any other charge or liability affecting that interest.

(4) Nothing in subsection (1) above shall affect the powers of the persons who were directed to collect any rentcharge, tithe or payment to which that subsection applies, or of the person in whom it was vested, to recover and enforce the recovery of any arrears payable before the appointed day.

13.—(1) On the appointed day, any provision of a scheme or order made under any enactment—

- (a) directing that there shall be paid out of a diocesan stipends fund specified in the scheme or order to the incumbent of a benefice so specified a stipend determined by the scheme or order ; or
- (b) charging the income account of a diocesan stipends fund so specified with the payment to the incumbent of a benefice so specified of a stipend so specified ; or
- (c) appropriating part of the endowments of a benefice so specified for the augmentation of a proposed benefice which has not been constituted before the appointed day,

Provision in certain schemes, etc. for payment of stipends or appropriation of endowments revoked.

shall cease to have effect.

(2) Where such a scheme or order contains such a provision as is mentioned in subsection (1)(c) above, then—

- (a) if a fund was established for the purposes of the scheme or order, the balance standing to the credit of the fund immediately before the appointed day shall on that day be allocated to the capital account of the diocesan stipends fund of the diocese to which the benefice specified in that provision belongs ; and
- (b) if the part of the endowments of that benefice appropriated as mentioned in that provision consists of an annual amount specified therein, the Commissioners

shall on that day allocate to the capital account of the said fund a sum of such amount as will in their opinion produce an annual income equal in amount to that so specified.

Future gifts for endowment of benefice, etc.

Property left or given to Commissioners or incumbent for certain purposes to be transferred to Diocesan Board of Finance.

14.—(1) Where on or after the appointed day any property is acquired by the Commissioners, or by the incumbent of a benefice in his capacity as such, by way of devise, bequest or gift, then, if—

- (a) the property is by the terms of the devise, bequest or gift to be held on permanent trusts for the provision or augmentation of the stipend of any person engaged in the cure of souls in, or in any part of, the area of a particular benefice or, as the case may be, the incumbent's benefice ; or
- (b) the property consists of any building or land which by the terms of the devise or gift is to be used for, or for the extension of, a house of residence for any person so engaged, other than an incumbent,

the Commissioners or incumbent shall transfer or convey the property to the Diocesan Board of Finance for the diocese to which that benefice belongs to be held by the Board subject to and in accordance with the terms of the devise, bequest or gift.

(2) Where a benefice becomes vacant after the incumbent thereof has acquired any property to which subsection (1) above applies and before he has complied with that subsection, the bishop of the diocese to which the benefice belongs shall during the vacancy have power and be under a duty to deal with the property in accordance with that subsection.

(3) Where subsection (1) above would apply in relation to any property devised or bequeathed to an incumbent of a benefice but for the fact that at the relevant date the benefice is vacant, the Diocesan Board of Finance for the diocese to which the benefice belongs shall during the vacancy have power to acquire the property in place of the incumbent.

(4) Notwithstanding anything in subsection (1) above or in the terms subject to and in accordance with which any property transferred or conveyed to a Board under that subsection is to be held, the Board to which any property falling within paragraph (a) of that subsection is so transferred or conveyed shall have power to apply any income arising from that property in defraying any expenses incurred by any person who is an object of the trusts created by those terms in performing the duties attaching to his office.

Provisions with respect to glebe land

15.—(1) Any glebe land which immediately before the appointed day is, or if the benefice were full would be, vested in right of his benefice in the incumbent of any benefice shall on that day and without any conveyance or other assurance vest by virtue of this section in the Diocesan Board of Finance for the diocese to which the benefice belongs freed and discharged from any previously existing trusts and charges in favour of any other benefice and any previously existing charge to which section 37(3) of this Measure relates, but in other respects—

Transfer of
glebe land
to Diocesan
Boards of
Finance.

- (a) subject to, and with the benefit of, any other previously existing trusts and charges, any previously existing tenancies and any covenants, conditions, agreements, easements and rights to which that land is subject and of which it has the benefit immediately before that day, and
- (b) subject to all such rights in the nature of easements as are necessary for the reasonable enjoyment of any parsonage land belonging to the benefice or any church land, being rights which were formerly exercisable by the incumbent of the benefice in right of his benefice.

(2) Such rights as are referred to in paragraph (b) of subsection (1) above shall on and after the appointed day take effect by virtue of this section as legal easements appurtenant to the land referred to in that paragraph.

(3) Without prejudice to subsection (1) above, there shall on the appointed day vest in a Diocesan Board of Finance by virtue of this section and without any conveyance or other assurance all such rights in the nature of easements over any parsonage land belonging to the benefice in question or any church land as are necessary for the reasonable enjoyment of any land which by virtue of that subsection is vested in that Board, being rights which were formerly exercisable by the incumbent of the benefice in right of his benefice.

(4) If there is a dispute between a Diocesan Board of Finance and an incumbent or sequestrators as to the land or any right which vests in the Board by virtue of this section, or as to any covenant, condition, agreement, easement or right to which any such land was subject or of which it had the benefit immediately before the appointed day, it shall be decided by the Commissioners whose decision shall be final and shall bind both parties to the dispute and any future incumbent of the benefice in question.

(5) Any decision of the Commissioners under this section shall be evidenced by an instrument under their seal.

Diocesan Board of Finance may require incumbent, etc. to furnish information as to glebe land.

16.—(1) The Diocesan Board of Finance for any diocese may from time to time require the incumbent, or the sequestrators, of any benefice belonging to that diocese—

(a) to furnish the Board with such information relating to any land which forms, or has at any time formed, part of the glebe land of the benefice as the Board requires to enable it to discharge its functions under this Measure ;

(b) to produce to the Board such documents in his or their possession, or under his or their control, concerning that land as the Board may specify or describe ;

and any person to whom a requirement under this subsection is directed shall comply with the requirement.

(2) A Diocesan Board of Finance shall, as respects any land which forms part of the glebe land of a benefice belonging to the diocese and which is subject to a lease, have the same right to require the lessee of that land to furnish the Board with any information it needs relating to that lease as the Board would have if it were the person to whom the rent payable under the lease is for the time being payable.

Lists of glebe land vested in Diocesan Boards of Finance to be prepared.

17. Within such period after the appointed day as the Commissioners may specify every Diocesan Board of Finance shall prepare a list in such form and containing such particulars as the Commissioners may prescribe of the glebe land which vested in that Board on that day by virtue of section 15 of this Measure and shall send a copy of the list to the Commissioners.

Means by which land may become diocesan glebe land.

18.—(1) A Diocesan Board of Finance may, with the consent of the Commissioners, acquire land to be held as part of the diocesan glebe land of the diocese.

(2) Subject to subsection (3) below, a Diocesan Board of Finance may, with the consent of the Commissioners and of the Charity Commissioners, appropriate for use as diocesan glebe land of the diocese any land vested in the Board, and any land appropriated under this subsection shall be held by the Board as part of such land.

1956 No. 3.
1964 No. 2.

(3) Where any land is vested in a Diocesan Board of Finance pursuant to section 6(2) of the Parochial Church Councils (Powers) Measure 1956 or section 3 of the Incumbents and Churchwardens (Trusts) Measure 1964, no appropriation of that land under subsection (2) above shall be made without the consent of the parochial church council concerned or the managing trustees of that land, as the case may be.

1943 No. 1.

(4) In subsection (1) of section 17 of the New Parishes Measure 1943 (powers of Commissioners and incumbent to sell, etc. land not longer required), the word “and” at the end of

paragraph (c) shall be omitted and after that paragraph there shall be inserted the following paragraph:—

“(cc) if the Diocesan Board of Finance for the diocese in which that land or building is situated agrees to accept the transfer, to transfer that land or building or any part thereof to that Board, the land or building or part thereof to be held by the Board as part of the diocesan glebe land of the diocese; and”.

(5) In subsection (3) of the said section 17 (restriction on appropriation or transfer of land acquired by gift or for nominal consideration), after the words “paragraph (c)” there shall be inserted the words “or (cc)”.

(6) In paragraph (c) of subsection (1) of section 31 of the Pastoral Measure 1968 (provisions relating to parsonage houses which may be included in pastoral schemes), after the word “Finance”, and in paragraph (e) thereof, after the word “Board”, there shall be inserted the words “to be held by the Board as part of the diocesan glebe land of the diocese or”. 1968 No. 1.

(7) In subsection (3) of the said section 31 (power to exclude land held with parsonage house or part of the site of demolished parsonage house from transfer under subsection (1)(c) or (e) of the section), after the word “Finance” there shall be inserted the words “to be held by the Board as part of the diocesan glebe land of the diocese or”.

19.—(1) The diocesan glebe land of a diocese shall be held, managed and dealt with by the Diocesan Board of Finance for the benefit of the diocesan stipends fund of the diocese. Diocesan
glebe land to
be held, etc.
for benefit
of diocesan
stipends fund;

(2) Within such period after the passing of this Measure as the Commissioners may specify the Diocesan Board of Finance for every diocese shall prepare a scheme which makes provision as to the persons by whom and the manner in which the diocesan glebe land of the diocese is to be managed and as to the means by which the expenses of managing that land are to be met and submit the scheme to the Commissioners for their approval. schemes for
management
of such land.

(3) Such a scheme may provide for the setting up of a committee or committees in accordance with the scheme to carry out such functions with respect to the management of the diocesan glebe land of the diocese as may be specified in the scheme, and any such committee may be the Parsonages Board for the diocese appointed under the Repair of Benefice Buildings Measure 1972 or a committee constituted in accordance with a scheme under that Measure. 1972 No. 2.

(4) Any such scheme may be varied, revoked or replaced by a subsequent scheme made by the Diocesan Board of Finance and approved by the Commissioners.

Powers of
Diocesan
Boards of
Finance
deal with
diocesan
glebe land.

20.—(1) Subject to subsections (2) to (4) below, a Diocesan Board of Finance may sell, exchange, lease, mortgage or otherwise deal with any diocesan glebe land of the diocese on such terms as the Commissioners may approve, being terms which they consider proper and advisable; and where the amenities of any land will be affected by the proposed transaction and the Commissioners think it necessary to do so in the interest of safeguarding those amenities, they may, notwithstanding anything in section 19(1) of this Measure, approve such terms as having regard to all the circumstances they consider reasonable and proper.

(2) When the Commissioners first approve a scheme prepared by a Diocesan Board of Finance under section 19 of this Measure they shall authorise that Board in writing to enter into and carry out any transaction relating to the diocesan glebe land of the diocese, other than a transaction specified in Schedule 3 to this Measure, without the approval of the Commissioners.

(3) If the Commissioners are satisfied—

(a) that the scheme for the management of the diocesan glebe land of a diocese which has been approved by them under the said section 19 is not being complied with, or

(b) that the scheme is not being so operated as to result in the efficient management of that land,

they may by notice in writing given to the Diocesan Board of Finance suspend the authorisation given to that Board under subsection (2) above, and as from the date on which the notice is received by the Board that authorisation shall be of no effect unless and until the suspension is cancelled under subsection (4) below.

(4) If a Diocesan Board of Finance on which a notice has been served under subsection (3) above satisfies the Commissioners that the scheme for the management of the diocesan glebe land of the diocese is being complied with or, as the circumstances require, that the Board has taken the action necessary to ensure that the scheme will thereafter be so operated as to result in the efficient management of that land, the Commissioners shall by notice in writing given to the Board cancel the suspension effected under subsection (3) above.

(5) Before a Diocesan Board of Finance applies to the Commissioners for their approval of the terms of any transaction under subsection (1) above the Board shall serve on the incumbent of the benefice in the parish of which the land to which the transaction relates is situated or, if the benefice is vacant, on the churchwardens of that parish a notice informing him or

them of the nature of the proposed transaction, identifying the land to which it relates and the easements (if any) over any church land or parsonage land of which that land has the benefit, and stating that written representations with respect to the transaction may be made to the Board not later than a date specified in the notice, being a date not less than twenty-one days after service of the notice.

(6) Where a transaction consists of the lease of diocesan glebe land which had it not become such land would be an excluded part of a parsonage house, a notice under subsection (5) above shall, if the benefice is vacant, be served on the bishop of the diocese as well as on the churchwardens of the parish.

(7) When making an application to the Commissioners for their approval of the terms of any transaction under subsection (1) above, any such Board shall forward with the application a copy of any representations which have been made to the Board under subsection (5) above with respect to the transaction or, if no such representations were made to the Board on or before the date specified in the notice required by that subsection, a statement by the Board to that effect.

(8) Before deciding whether to approve the terms of any transaction under subsection (1) above the Commissioners shall consider any representation a copy of which has been sent to them under subsection (7) above, and where the transaction consists of the lease of such land as is referred to in subsection (6) above they shall, if the incumbent concerned so requests, or if during a vacancy the bishop of the diocese or the churchwardens of the parish so request, give him or them, as the case may be, an opportunity to make oral representations to their representative with respect to the proposed transaction.

(9) As a condition of giving their approval to the terms of any transaction under subsection (1) above the Commissioners may require the Board to include in the conveyance, deed of exchange, lease or other document such provisions, if any, as appear to them to be necessary to give effect to those terms.

(10) A statement in a document signed by the secretary or other duly authorised officer of the Commissioners that the Commissioners have approved the terms of any transaction under subsection (1) above which is specified in the document shall be conclusive evidence that those terms have been so approved.

(11) A statement in a document giving effect to a transaction made by a Diocesan Board of Finance under this section that the approval of the Commissioners of the terms of the transaction is not required under subsection (1) above shall, if the document is sealed with the seal of that Board or is signed on behalf of the Board by a person duly authorised by the Board to act in its behalf, be conclusive evidence of that fact.

Power to vary list of transactions terms of which require the Commissioners' approval.

21.—(1) The Commissioners may by order vary any of the provisions of Schedule 3 to this Measure either by adding one or more entries or by altering or deleting any entry for the time being contained in it, and the references in section 20(2) of this Measure, or in any authorisation given thereunder, to that Schedule shall be construed as a reference to that Schedule as for the time being in force.

(2) Every order made under subsection (1) above shall be laid before the General Synod and shall not come into operation unless and until it has been approved by the General Synod.

1946 c. 36.

(3) The Statutory Instruments Act 1946 shall apply to any order approved by the Synod under subsection (2) above as if the order were a statutory instrument and were made when so approved and as if this Measure were an Act providing that any such order should be subject to annulment in pursuance of a resolution of either House of Parliament.

Enforcement of restrictive covenants.

22. Where a Diocesan Board of Finance has sold, exchanged or leased any diocesan glebe land of the diocese and the document giving effect to the transaction contains a restrictive covenant imposed for the benefit of any church land or parsonage land, that covenant shall be enforceable by the Board as if it were the owner of that land.

Grant or appropriation of diocesan glebe land for certain purposes.
1943 No. 1.

23.—(1) Notwithstanding anything in section 19(1) of this Measure, a Diocesan Board of Finance may, in the exercise of its powers under section 14 of the New Parishes Measure 1943 (power of certain bodies to grant to the Commissioners buildings or land for any purpose mentioned in section 13 of that Measure) and with the consent of the Commissioners, grant to the Commissioners—

- (a) any building on any diocesan glebe land of the diocese, being a building which consists of a church or part of a church or is fit to be used as or to be converted into a church ;
- (b) any such land as a site for a new church or for a church to be substituted for an existing church or for enlarging the site of an existing church ;
- (c) any such land for providing a new or extending an existing churchyard or burial ground ;
- (d) any such building or land for, or for the extension of, a house of residence for an incumbent ;
- (e) any such land required for providing access to or improving the amenities of any such church, churchyard, burial ground or house of residence ;

and no such Board may in the exercise of the said powers grant

any such building or land for any other purpose mentioned in section 13 of that Measure.

(2) Notwithstanding anything in section 19(1) of this Measure, a Diocesan Board of Finance may with the consent of the Commissioners appropriate any such building or land for any purpose mentioned in paragraph (bb) of section 13(1) of the said Measure of 1943, that is to say, for use as a church hall, or for use both as a church or other place of worship and as a church hall, or any such land for the site of such a building.

(3) Where any building or land is appropriated by such a Board under subsection (2) above, the parochial church council of the parish in which the building or land is situated shall have the like powers and obligations in relation to it as if it were vested in the Board pursuant to section 6(2) of the Parochial Church Councils (Powers) Measure 1956. 1956 No. 3.

24. Notwithstanding anything in section 19(1) of this Measure, a Diocesan Board of Finance may permit a person holding the office of vicar in a team ministry to reside in a dwelling house situated on the diocesan glebe land of the diocese without payment of any rent. Rent free house for team vicar on diocesan glebe land.

25.—(1) Subject to subsection (2) below, the proceeds of, or the capital moneys arising from, any sale, exchange or other dealing with the diocesan glebe land of a diocese, and any other payment in the nature of capital made to a Diocesan Board of Finance in respect of such land, shall be paid by the Board to the Commissioners immediately after the completion of the transaction in question or, as the case may be, the payment is made, and the amount so paid shall be allocated by the Commissioners to the capital account of the diocesan stipends fund of that diocese. Moneys arising from dealings, etc. with diocesan glebe land to be paid to the Commissioners.

(2) Where any diocesan glebe land of a diocese is subject to a mortgage and any estate or interest in that land is sold or exchanged by the Diocesan Board of Finance, any principal money or interest owing under the mortgage at the date of the completion of the transaction may be discharged by the Board out of the proceeds arising from the sale or exchange.

(3) Where a payment has been made to the Commissioners under subsection (1) above, the costs, charges and expenses of the related transaction shall be charged on the capital account of the diocesan stipends fund of the diocese concerned and shall be paid by the Commissioners out of that fund.

(4) All rents or other periodical payments in the nature of income received by a Diocesan Board of Finance in respect of the diocesan glebe land of the diocese, less so much of any

such payments as is required to enable the Board to meet any recurring outgoings attributable to that land or the expenses incurred in managing that land, shall be paid by the Board to the Commissioners at such times and in such manner as the Commissioners may specify, and, subject to subsection (5) below, the sums so paid shall be allocated by the Commissioners to the income account of the diocesan stipends fund of that diocese.

(5) Any periodical or other payment for or in respect of mines and minerals vested in a Diocesan Board of Finance as part of the diocesan glebe land of the diocese, other than surface rents, shall be treated as a payment in the nature of capital for the purposes of subsection (1) above.

(6) Any question whether any sum paid to the Commissioners under this section should be allocated to the capital account or income account of a diocesan stipends fund, any question whether any outgoings are recurring outgoings attributable to the diocesan glebe land of a diocese, and any question whether any expenses were or will be incurred in managing such land, shall be conclusively determined by the Commissioners.

Diocesan
glebe land
income and
minerals
accounts.

26.—(1) Every Diocesan Board of Finance shall open and thereafter keep—

- (a) an account of the income of the Board arising from the diocesan glebe land of the diocese during the period to which the account relates and of the expenditure incurred by the Board during that period in meeting the recurring outgoings attributable to that land and the expenses of managing it; and
- (b) an account of the periodical or other payments for or in respect of mines and minerals vested in the Board as part of the diocesan glebe land of the diocese, other than surface rents, received by the Board during the period to which the account relates and of the expenditure incurred by the Board during that period in respect of fees or other charges for services rendered in connection with the searching for, working and getting of such mines and minerals.

(2) The references in subsection (1) above to the period to which an account relates shall be construed as references to the period of a year or such other period, if any, as the Commissioners may from time to time specify, and the date on which for the purposes of that subsection any period begins shall be that specified by the Commissioners.

(3) Every Diocesan Board of Finance shall transmit to the Commissioners annually a copy of each of the accounts referred to in subsection (1) above duly audited together with a return

containing particulars of such of the matters to which the accounts relate as the Commissioners may prescribe.

27. Every Diocesan Board of Finance shall keep the Commissioners informed of such matters as the Commissioners may from time to time prescribe, being matters arising from any notice given to the Board by a Government department or local or public authority or public utility undertakers and affecting the diocesan glebe land of the diocese.

Commissioners to be informed of certain matters affecting diocesan glebe land.

28.—(1) On the appointed day any provision made by virtue of section 7 of the Repair of Benefice Buildings Measure 1972 (provision for requiring incumbents to pay annual sums in respect of the cost of repairs to glebe buildings and for crediting such sums to benefice account) in a scheme under that Measure shall cease to have effect.

Liability of incumbents to make payments in respect of cost of repairs to glebe buildings abolished.

(2) The aggregate of any sums which at the appointed day stand to the credit of any account for a benefice kept by a Parsonages Board in accordance with any such provision shall—

1972 No. 2.

(a) if the Diocesan Board of Finance for the diocese to which the benefice belongs is the Parsonages Board for that diocese, be credited to the diocesan glebe land income account kept by the Diocesan Board of Finance in accordance with section 26(1)(a) of this Measure ; and

(b) in any other case, be paid by the Parsonages Board to the Diocesan Board of Finance for the diocese to which the benefice belongs not later than twenty-eight days after the appointed day and be credited to the said account.

(3) The aggregate of the sums apportioned under section 18(1) of the said Measure of 1972 to glebe buildings belonging to benefices in a diocese and held by the Commissioners at the appointed day shall be paid by the Commissioners to the Diocesan Board of Finance for the diocese, and the amount so paid shall be credited to the account mentioned in paragraph (a) of subsection (2) above.

Provisions with respect to parsonage land

29. Neither the incumbent of a benefice nor any sequestrators thereof shall grant a lease of any excluded part of a parsonage house belonging to the benefice to any person on or after the appointed day ; and any lease granted in contravention of this section shall be void.

Letting of certain part of parsonage house prohibited.

Provisions to have effect where part of parsonage house has been let by incumbent.

30.—(1) Where any excluded part of a parsonage house belonging to a benefice is the subject of a lease, the incumbent shall within seven days after any sum in respect of rent under the lease is received by him pay that sum to the Diocesan Board of Finance for the diocese to which the benefice belongs (hereafter in this section referred to as “the Board”).

(2) Any sum which an incumbent is required by subsection (1) above to pay to the Board shall be recoverable as a debt due to the Board from the incumbent or his personal representative.

(3) Any sum paid to the Board under subsection (1) above shall be deemed to be income of the Board arising from the diocesan glebe land of the diocese and shall be deemed not to form part of the income of the incumbent by whom the sum was paid.

(4) The Board may require the incumbent to take all necessary steps to enforce any covenant by the lessee contained in the lease and in particular, the covenant to pay rent.

(5) If the incumbent fails to take or prosecute such steps or requests the Board to do so on his behalf, the Board may take or continue, in the name and on behalf of the incumbent, proceedings for enforcing any such covenant, and shall be deemed for that purpose to be the duly authorised attorney of the incumbent and his successors; and the incumbent shall leave the conduct of the proceedings in the hands of the Board.

(6) The Board shall indemnify the incumbent in respect of any costs reasonably incurred by him in any proceedings to enforce any such covenant and not recovered from the other party.

(7) The Board shall make good to the incumbent or defray on his behalf the cost of fulfilling his obligations under the lease and of meeting any expenses of maintenance, repairs and insurance of the premises subject to the lease which fall to be borne by him.

(8) Any payments made by the Board under subsection (7) above shall be deemed for the purposes of section 25(4) of this Measure to have been made to meet recurring outgoings attributable to the diocesan glebe land of the diocese.

(9) During a vacancy in a benefice the preceding provisions of this section shall have effect with the substitution for references to the incumbent of references to the sequestrators of the benefice.

31. The Diocesan Board of Finance for a diocese may from time to time require the incumbent, or the sequestrators, of a benefice belonging to the diocese to supply the Board with particulars of any part of the parsonage land of the benefice which is the subject of a lease and of the terms of the lease, and any person to whom a requirement under this section is directed shall comply with the requirement.

Diocesan Board of Finance may require incumbent, etc. to furnish particulars of certain leases.

32.—(1) Where the Commissioners are satisfied that any parsonage land belonging to a benefice or any part thereof, and, in particular, a parsonage house or any excluded part of a parsonage house, is not necessary for the convenient occupation of the incumbent or, as the case may be, is not required as the residence house of the benefice, they may, subject to subsection (2) below, by order under their seal provide for the transfer on such date as may be specified in the order of that land to the Diocesan Board of Finance for the diocese to which the benefice belongs.

Provisions for transfer of parsonage land to Diocesan Board of Finance.

(2) Before exercising their powers under this section the Commissioners shall consult the Diocesan Board of Finance for the diocese to which the benefice in question belongs and the incumbent or any sequestrators concerned.

(3) On the date specified in an order under this section—

(a) the land referred to therein shall without any conveyance or other assurance vest in the Board by virtue of this section subject to and with the benefit of any previously existing tenancies and any covenants, conditions, agreements, easements and rights to which that land is subject and of which it has the benefit immediately before that date, and

(b) if the order so provides, subject to all such rights in the nature of easements as are necessary for the reasonable enjoyment of any other parsonage land belonging to the benefice in question or any church land, being rights which were formerly exercisable by the incumbent of that benefice in right of his benefice ;

and where the order contains a provision made in pursuance of paragraph (b) above, such rights as are referred to in that provision shall on and after the date so specified take effect by virtue of this section as legal easements appurtenant to the land referred to in that provision.

(4) An order under this section may also provide that on the date specified in the order there shall without any conveyance or other assurance vest by virtue of this section in the Board to which any parsonage land is transferred by the order all such rights in the nature of easements over any other parsonage

land belonging to the benefice in question or any church land as are necessary for the reasonable enjoyment of the land transferred, being rights which were formerly exercisable by the incumbent of that benefice in right of his benefice.

(5) An order under this section may specify any tenancy, covenant, condition, agreement, easement or right subject to, or with the benefit of, which the land to which the order relates vests in the Diocesan Board of Finance by virtue of this section.

(6) Any land which vests in a Diocesan Board of Finance by virtue of this section shall be held by the Board as part of the diocesan glebe land of the diocese.

(7) An order under this section may contain such incidental or supplementary provisions as appear to the Commissioners to be necessary or expedient for giving effect to the purpose of the order.

(8) The Commissioners may by a further order under this section remedy any defects or omissions which in their opinion exist in the original, or any previous amending, order made by them thereunder.

Repair of
former
parsonage
house while
vested in
incumbent.
1972 No. 2.

33.—(1) Any dwelling-house which in the opinion of the Commissioners should be retained for use as a parsonage house, together with the buildings, gardens, orchards, paddocks, walls, fences and appurtenances necessary for the convenient occupation of the house, shall, so long as the house is, or if the benefice were full would be, vested in the incumbent of a benefice be deemed to be a parsonage house for the purposes of the Repair of Benefice Buildings Measure 1972.

(2) This section does not apply to a dwelling-house held under a lease which makes the landlord wholly or mainly responsible for the repairs.

Sale,
exchange,
etc. of part of
parsonage
house.
1938 No. 3.

34. For the removal of doubt it is hereby declared that section 1 of the Parsonages Measure 1938 (incumbent, etc. to have power in certain circumstances to sell, exchange or pull down residence house of a benefice, etc.) applies to any excluded part of a parsonage house of a benefice so long as that part is, or if the benefice were full would be, vested in the incumbent.

Financial provisions

Further
provisions
relating to
diocesan
stipends
funds.
1953 No. 2.

35.—(1) At the end of paragraph (a) of section 2 of the Diocesan Stipends Funds Measure 1953 (moneys to be allocated to capital and income accounts), there shall be inserted the following sub-paragraph:—

“(iv) any moneys standing to the credit of the income account of the fund which the Commissioners with the consent of the diocesan board of finance concerned

decide to transfer to the capital account of that fund ;
and ”.

(2) For section 4 of the said Measure of 1953 there shall be substituted the following section :—

“ 4.—(1) Subject to any charges imposed on the capital of the diocesan stipends fund of a diocese by any enactment or any scheme or order made under any enactment, moneys standing to the credit of the capital account of that fund may, at the discretion of the Commissioners on the request of the bishop made with the concurrence of the diocesan board of finance, be applied for any or all of the following purposes :—

- (a) the acquisition of any land to be held by the board as part of the diocesan glebe land of the diocese ;
- (b) the development or improvement of any such land and the safeguarding of the amenities thereof ;
- (c) the discharge of any expense of a capital nature levied under any enactment and payable by the diocesan board of finance as the person for the time being entitled to the interest in any such land by reference to which the expense was levied ;
- (d) the discharge of any principal or interest owing in respect of any loan made in respect of any such land ; and
- (e) the discharge of any principal or interest owing in respect of any loan made to the board by the Commissioners under section 36 of the Endowments and Glebe Measure 1976.

(2) In this section ‘development’, in relation to a building, includes the division or demolition thereof and ‘diocesan glebe land’ has the same meaning as in the Endowments and Glebe Measure 1976.”

(3) For subsection (3) of section 5 of the Parsonages Measure 1938 No. 3. 1938 there shall be substituted the following subsection :—

“ (3) Any moneys arising from any sale or exchange of any part of the property of a benefice under this Measure, in so far as they shall not be applied and disposed of under the foregoing provisions of this section or under section 36(2) of the Endowments and Glebe Measure 1976, shall be allocated by the Church Commissioners to the capital account of the diocesan stipends fund of the diocese to which the benefice belongs.”

Provisions with respect to loans to Diocesan Boards of Finance.

36.—(1) The Commissioners shall have power to make to a Diocesan Board of Finance, and any such Board shall have power to receive, loans of such amounts, on such terms, and subject to the payment of interest at such rate, as the Commissioners think fit for any or all of the following purposes:—

- (a) the acquisition of any land to be held by the Board as part of the diocesan glebe land of the diocese;
- (b) the development or improvement of any such land and the safeguarding of the amenities thereof;
- (c) the discharge of any principal or interest owing under any mortgage on any such land; and
- (d) the provision, development or improvement of parsonage land and the safeguarding of the amenities thereof.

1938 No. 3.

(2) Where a loan has been made to a Diocesan Board of Finance by the Commissioners or any other person for any purpose specified in paragraph (d) of subsection (1) above and the parsonage land in connection with which the loan was made is subsequently sold or exchanged under the Parsonages Measure 1938, then, without prejudice to section 5(2) of that Measure, any moneys arising from the sale or exchange may be applied by the Commissioners in or towards the discharge of any principal or interest which remains owing in respect of that loan.

(3) In this section “development”, in relation to a building, includes the division or demolition thereof.

Provisions with respect to certain loans outstanding at the appointed day.

37.—(1) The amount of any principal money or interest which at the appointed day remains owing in respect of—

- (a) any loan made by Queen Anne’s Bounty or the Commissioners to the incumbent of a benefice for or towards the erection, purchase or improvement of a glebe building, or the purchase or improvement of glebe land or the cost of repairs to any glebe building, or
- (b) any loan made by a Parsonages Board to the incumbent of a benefice for or towards the cost of repairs to any glebe building,

shall be paid to the Commissioners or the said Board, as the case may be, out of either the income account of the diocesan stipends fund of the diocese to which the benefice belongs or the capital account of that fund as the Commissioners, after consultation with the Diocesan Board of Finance for that diocese, may determine.

(2) Subsection (1) above shall have effect notwithstanding anything in section 4 or 5 of the Diocesan Stipends Funds Measure 1953 No. 2.

(3) The amount of any principal money or interest which at the appointed day remains owing in respect of any loan made under the Clergy Residences Repair Act 1776 or any other Act or Measure to the incumbent of a benefice, being a loan made for or towards the provision, division, improvement or repair of a parsonage house or for any purpose specified in section 10 of the Parsonages Measure 1938, shall on that day become secured on the parsonage house of that benefice in like manner as it was previously secured on the glebe, rents and other profits and emoluments thereof.

1776 c. 53.
(17 Geo. 3.)

1938 No. 3.

Sequestrations

38.—(1) Section 3 of the Benefices (Sequestrations) Measure 1933 (sequestrators may require income of vacant benefice payable by the Commissioners to be apportioned) and section 70 of the Pastoral Measure 1968 (disposal of profits in hands of sequestrators on dissolution of benefice) shall cease to have effect.

Amendments
of the law
relating to
sequestrations.
1933 No. 4.
1968 No. 1.

(2) The bishop of a diocese may with the consent of the Commissioners authorise the sequestrators of any benefice in the diocese, if they think fit, but subject to section 29 of this Measure, to grant a lease of any parsonage land belonging to the benefice for such period as the bishop may authorise, and any such lease shall be subject to the provisions of section 59 of the Pluralities Act 1838.

1838 c. 106.

(3) Subject to paragraph 5 of Schedule 7 to the Pastoral Measure 1968 (application of balance in hands of sequestrators where period of suspension of presentation follows period of vacancy), any sequestrators appointed during a vacancy in a benefice shall at the close of the sequestration pay the balance in their hands, as certified by the bishop or some person duly authorised by him, to the Commissioners, and the Commissioners shall allocate the amount received to the income account of the diocesan stipends fund.

(4) For paragraph 4 of the said Schedule 7 there shall be substituted the following paragraph:—

“4. Moneys received by the Commissioners from the sequestrators under paragraph 3(2) or (3) of this Schedule shall be allocated to the income account of the diocesan stipends fund.”

(5) In paragraph 6 of the said Schedule 7 (accounts to be rendered to the bishop and the Commissioners by the sequestrators), the words "and the Commissioners" and "or the Commissioners" shall cease to have effect.

Repair of chancels

Liability to repair certain chancels transferred to parochial church councils.

(a) arising from the ownership immediately before the of repairing, the chancel of a church, being a liability—

(a) arising from the ownership immediately before the appointed day of glebe land or any other property constituting part of the endowments of a benefice and held by or in trust for the incumbent of the benefice, or

1936 c. 43.

(b) arising from the ownership of any tithe rentcharge which was extinguished on 2 October 1936 by the Tithe Act 1936 and immediately before that date was held by Queen Anne's Bounty in trust for the incumbent of a benefice,

shall on the appointed day and without any assurance be transferred to and become the liability of the parochial church council of the parish in which the church is situated.

Miscellaneous

Memorandum etc. of Diocesan Board of Finance extended.

40. The Memorandum and Articles of Association of a Diocesan Board of Finance or (if any such Board is not a registered company) the constitution thereof shall be deemed to include the furtherance of the work of the Church of England by the exercise of functions under this Measure and such ancillary powers as are necessary for the exercise of those functions.

Amendment as to vesting of certain land acquired by the Commissioners.
1943 No. 1.

41.—(1) In section 16(2) of the New Parishes Measure 1943 (provisions with respect to vesting of land acquired by the Commissioners under section 13 of that Measure for house of residence for incumbent, etc.), the words "or other ecclesiastical person" and the words from "or, if the land" to the end of the subsection shall be omitted.

(2) For subsection (3) of the said section 16 there shall be substituted the following subsection:—

"(3) Where any building or land acquired under section 13 of this Measure is—

(a) a building for use as a church hall or for use both as a church or other place of worship and as a church hall;

(b) land for the site of such a building;

(c) a building or land for, or for the extension of, a house of residence for an ecclesiastical person other than an incumbent; or

(d) land required for providing access to or improving the amenities of such a house,
and that building or land, or any part thereof, is, with the consent of the diocesan authority, designated in the conveyance under which the building or land is so acquired as vesting in that authority, it shall vest in that authority accordingly."

42. The Commissioners may at any time seek information from, and give advice to, any Diocesan Board of Finance on any matter concerning their functions under this Measure, and that Board shall provide such information and have regard to such advice.

Guidance by the Commissioners.

43. Section 85 of the Pastoral Measure 1968 (certain administrative functions of a diocesan bishop may be delegated to a suffragan or assistant bishop or archdeacon of the diocese) shall apply to the functions of the bishop of a diocese under this Measure.

Delegation of functions of bishops.
1968 No. 1.

44. In section 45(2) of the Charities Act 1960 (which provides that "charity" in that Act is not applicable to certain ecclesiastical corporations or trusts), after paragraph (a) there shall be inserted the following paragraph:—

Amendment of s. 45 of Charities Act 1960.
1960 c. 58.

"(aa) to any Diocesan Board of Finance within the meaning of the Endowments and Glebe Measure 1976 for any diocese in respect of the diocesan glebe land of that diocese within the meaning of that Measure; or".

Supplemental

45.—(1) In this Measure, except in so far as the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

Interpretation.

"the appointed day" means the day appointed under section 49(2) of this Measure;

"benefice" means the office of a rector or vicar of a parish or parishes, with cure of souls, but not including the office of vicar in a team ministry;

"church land" means the site of any church together with the churchyard and other land annexed or belonging to the church, and any burial ground vested in the incumbent of a benefice (when the benefice is full) but not annexed or belonging to a church;

"the Commissioners" means the Church Commissioners;

"Diocesan Board of Finance" means, in relation to a diocese, the board of that name constituted under the Diocesan Boards of Finance Measure 1925 for that diocese or recognised under section 9 of the Diocesan Stipends Funds Measure 1953 as being the board of

1925 No. 3.
1953 No. 2.

finance for that diocese for the purpose of that Measure ;

“ diocesan glebe land ” means glebe land acquired by a Diocesan Board of Finance under any provision of this Measure and any other land acquired by such a Board, being land which by virtue of, or of any enactment amended by, a provision of this Measure is to be held as part of the diocesan glebe land of the diocese ;

1944 No. 1.

1949 No. 3.

1953 No. 2.

“ diocesan stipends fund ” means, in relation to a diocese, the fund of that name established under the Reorganisation Areas Measure 1944 or the Pastoral Reorganisation Measure 1949 or the Diocesan Stipends Funds Measure 1953 for that diocese ;

“ glebe land ” means land vested in the incumbent of a benefice (when the benefice is full) as part of the endowments of the benefice other than parsonage land ;

“ land ” includes land of any tenure, and mines and minerals, whether or not held apart from the surface, buildings or parts of buildings (whether the division is horizontal, vertical or made in any other way) and other corporeal hereditaments, also a manor, a rent and other incorporeal hereditaments other than an advowson, and an easement, right, privilege or benefit in, over or derived from land ;

“ lease ” includes an underlease and a tenancy and an agreement for a lease, underlease or tenancy, and “ lessee ” shall be construed accordingly ;

“ mines and minerals ” includes any stratum or seam of minerals or substances in or under any land, and powers of searching for, working and getting the same, and “ minerals ” includes sand and gravel ;

“ mortgage ” includes charge ;

1972 No. 2.

“ Parsonages Board ” means the Board appointed or designated under section 1 of the Repair of Benefice Buildings Measure 1972 for the purposes of that Measure ;

1938 No. 3.

“ parsonage house ” means a residence vested in the incumbent of a benefice (when the benefice is full), being his official residence, and includes the buildings, gardens, orchards, paddocks, walls, fences and appurtenances occupied with the residence ; and “ excluded part of a parsonage house ” means any part of a parsonage house which by reason of a certificate of the bishop under section 11 of the Parsonages Measure 1938 is to be deemed not to form part of that house ;

“ parsonage land ” means any of the following—

- (a) a parsonage house ;
- (b) any excluded part of a parsonage house ;
- (c) any building, part of a building or land which the incumbent of a benefice has acquired or agreed to acquire as a parsonage house or for the site of such a house ;
- (d) any building, part of a building or land vested in the incumbent of a benefice (when the benefice is full), being a building or land which in the opinion of the Commissioners should be retained for use as a parsonage house or as the site for such a house ;
- (e) any parsonage house or part thereof which ceases to be, or to be part of, such a house by virtue of a pastoral scheme or order and for which no provision for its transfer is made by that scheme or order ;
- (f) any parsonage house or part thereof which has ceased to be, or to be part of, such a house otherwise than by virtue of a pastoral scheme or order and in relation to which the consent of the Commissioners for its sale under the Parsonages Measure 1938 has been given ;

1938 No. 3.

“ pastoral order ” means an order made by the bishop under section 7 of the Pastoral Measure 1968 ;

1968 No. 1.

“ pastoral scheme ” means a scheme made by the Commissioners and confirmed by Order in Council under Part I of the Pastoral Measure 1968, and includes any scheme made in pursuance of proposals by a joint pastoral committee appointed under section 12 of that Measure ;

“ sale ”, in relation to an easement, right, privilege, or benefit in, over or derived from land, includes grant.

(2) If any question whether any land is parsonage land arises it shall be conclusively determined by the Commissioners.

(3) Any reference in this Measure to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, including this Measure.

46. The provisions of Schedule 4 to this Measure shall have effect in relation to a provision in a pastoral scheme or order that part of the income of the endowments of a benefice shall be paid to the income account of a diocesan stipends fund where—

Effect of endowment income diversion provisions in certain schemes and orders.

(a) the scheme or order is made, and in the case of the scheme confirmed, on or after the appointed day but

the inclusion therein of such a provision was under consideration before that day ; or

- (b) the scheme or order was made, and in the case of the scheme confirmed, before that day but the provision in question comes into force on or after that day.

Amendments,
transitional
provisions
and repeals.

47.—(1) Schedule 5 to this Measure, which contains minor and consequential amendments of certain enactments, shall have effect.

(2) The transitional provisions in Schedule 6 to this Measure shall have effect.

(3) The enactments specified in Schedule 7 to this Measure, being enactments relating to the sale, purchase, exchange, leasing and other dealings with ecclesiastical property, shall to the extent specified in column 3 of that Schedule cease to apply to any incumbent.

(4) The Acts and Measures specified in Schedule 8 to this Measure are hereby repealed to the extent specified in column 3 of that Schedule.

Extent and
application.

1931 No. 4.
1957 No. 1.

48.—(1) This Measure shall extend to the whole of the provinces of Canterbury and York, except the Channel Islands and the diocese of Sodor and Man, but may be applied to the Channel Islands or either of them, as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, in accordance with those Measures.

(2) This Measure applies to benefices in the patronage of the Crown or of the Duchy of Cornwall.

Short title,
and commence-
ment.

49.—(1) This Measure may be cited as the Endowments and Glebe Measure 1976.

(2) Sections 9, 16, 19(2) to (4), 31, 32 and 34 of this Measure shall come into force on the passing of this Measure and the other provisions thereof shall come into force on such day as the Commissioners may by order appoint.

SCHEDULES

SCHEDULE 1

Section 4.

PROVISIONS WITH RESPECT TO SCHEMES UNDER SECTION 4

1. A draft of a scheme under section 4 of this Measure shall be prepared by the Commissioners after consultation with the bishop of the diocese to which any benefice which may be affected by the scheme belongs.

2. The Commissioners shall serve a copy of the draft scheme on—

- (a) the Diocesan Board of Finance for the said diocese ;
- (b) the incumbent (if any) for the time being of a benefice, the incumbent of which is by virtue of the Act to which the draft scheme relates entitled to be paid an annual sum by the Commissioners or other the trustees for the purposes of that Act ;
- (c) the parochial church council of any parish belonging to that benefice ; and
- (d) if the Act to which the draft scheme relates is one listed in Part II of Schedule 2 to this Measure, the persons who are for the time being the trustees for the purposes of that Act,

together with a notice stating that written representations with respect to the draft scheme may be made to the Commissioners not later than a date specified in the notice, being a date not less than 28 days after the service of the notice.

3.—(1) The Commissioners shall consider any representations duly made with respect to the draft scheme and any change of circumstances affecting its implementation, and may decide not to proceed with it or to amend it or to proceed with it in its original form and shall consult the bishop referred to in paragraph 1 above before making their decision.

(2) If the Commissioners decide to amend the draft scheme, the amended draft scheme shall be treated in the same manner as the original draft scheme and paragraph 2 and sub-paragraph (1) above shall apply thereto accordingly.

4.—(1) If the Commissioners decide to proceed with the draft scheme they shall seal a copy thereof, with such amendments, if any, as they may have made therein, and shall thereby make the scheme.

(2) As soon as possible after making a scheme under section 4 of this Measure the Commissioners shall submit the scheme for confirmation by Her Majesty in Council and shall—

- (a) notify every person on whom a copy of the draft scheme was required to be served that the scheme has been so submitted ; and
- (b) publish in the London Gazette a notice sufficiently identifying the scheme and stating that it has been so submitted and where a copy of it may be obtained.

SCH. 1

1946 c. 36.

5.—(1) On the publication of a notice in the London Gazette that a scheme under the said section 4 has been submitted for confirmation by Her Majesty in Council the scheme shall be laid before each House of Parliament, and upon the scheme being so laid section 6 of the Statutory Instruments Act 1946 shall have effect as if this Measure were an Act and the scheme were the draft of a statutory instrument, and section 7(1) of that Act shall apply accordingly.

(2) If no resolution is passed under the said section 6 that the scheme be not made, Her Majesty may confirm the scheme by Order in Council.

6. As soon as possible after a scheme under section 4 of this Measure is confirmed by Order in Council under paragraph 5 above there shall be published in the London Gazette a notice sufficiently identifying the scheme and stating that it has been confirmed and where a copy of the Order in Council may be obtained.

7.—(1) The Commissioners shall send a copy of every Order in Council under paragraph 5 above to—

- (a) every person on whom a copy of a draft of the scheme was required to be served ;
- (b) the bishop of the diocese concerned ; and
- (c) the registrar of that diocese.

(2) The copy of an Order in Council served on the registrar aforesaid shall be filed by him in the diocesan registry.

8. Except insofar as any such scheme, or any provision thereof, is expressed to come into operation on a date, event or contingency specified therein, it shall come into operation on the date on which notice thereof is published in the London Gazette under paragraph 6 above.

Section 4.

SCHEDULE 2

ACTS TO WHICH SECTION 4 APPLIES

PART I

1866 c. 86.	The Rochdale Vicarage Act 1866.
1882 c. lvii.	The Walton-on-the-Hill Vicarage Act 1882.
1884 c. 4.	The Winwick Rectory Act 1884.
1890 c. xxiii.	The Burnley Rectory Act 1890.
1891 c. clxv.	The Handsworth Rectory Act 1891.
1897 c. cxiii.	The Liverpool City Churches Act 1897.
1898 c. xiii.	The St. Matthew Bethnal Green (Church Rate Abolition) Act 1898.
1898 c. cxci.	The St. Marylebone (Church Rate Abolition) Act 1898.
1903 c. xvi.	The All Saints Poplar (Rate Abolition) Act 1903.
1907 c. xl.	The Sutton Coldfield Rectory Act 1907.
1910 c. xxxiii.	The St. Mary Stockport Rectory Act 1910.
1911 c. clxxxviii.	The St. Mary Radcliffe Rectory Act 1911.

The St. Mary Prestwich Rectory Act 1911.
The St. Olave's Southwark Church Act 1918.
The Weaver Navigation Act 1928.

SCH. 2
1911 c. clxxxix.
1918 c. xxxix.
1928 c. xxxiv.

PART II

The Walton-on-the-Hill Rectory Act 1843.
The Walton-on-the-Hill Rectory Amendment Act 1877.
The Walton-on-the-Hill Vicarage Act 1882.

1843 c. 16.
1877 c. 2.
1882 c. lvii.

SCHEDULE 3

Sections 20, 21.

TRANSACTIONS RELATING TO DIOCESAN GLEBE LAND THE TERMS OF WHICH REQUIRE THE COMMISSIONERS' APPROVAL

Sale.

Exchange.

Lease granted wholly or partly in consideration of a premium.

Lease for a term of 21 years or more.

Lease of such land as is referred to in section 20(6) of this Measure.

Lease, licence or agreement relating to the searching for, or working and getting of, mines and minerals and any other operation arising therefrom.

Mortgage.

SCHEDULE 4

Section 46.

PROVISIONS WITH RESPECT TO DIVERSION OF ENDOWMENT INCOME PROVISIONS IN CERTAIN SCHEMES AND ORDERS

1. Where before the appointed day—

- (a) the pastoral committee of a diocese had given notice in writing to the incumbent (if any) of a benefice in the diocese, and to the parochial church council of every parish belonging to the benefice, that the committee was considering whether to make a recommendation to the bishop under section 3 of the Pastoral Measure 1968 that part of the income of the endowments of the benefice should be paid to the income account of the diocesan stipends fund; or
- (b) the said committee had submitted to the bishop under subsection (5) of the said section 3 a draft proposal that part of the income of the endowments of a benefice in the diocese should be so paid,

1968 No. 1.

and a pastoral scheme or order containing a provision that a specified annual amount of the income of the endowments of that benefice, or the excess over a specified amount thereof, shall be so paid is made, and, in the case of such a scheme, confirmed by Her Majesty in Council, on or after the appointed day, paragraph 3 below shall apply to that provision.

SCH. 4

2. Where a pastoral scheme or order made and, in the case of such a scheme, confirmed by Her Majesty in Council before the appointed day contains a provision that a specified annual amount of the income of the endowments of a benefice, or the excess over a specified amount thereof, shall be paid to the income account of the diocesan stipends fund, and that provision comes into force on or after the appointed day, paragraph 3 below shall apply to that provision.

3. A provision to which this paragraph applies shall have effect—

(a) as if it had been in force immediately before the appointed day; and

(b) as if the guaranteed annuity in respect of the benefice to which the provision relates and the annual personal grant, if any, payable under section 2 of this Measure to the incumbent of that benefice had been endowment income of that benefice immediately before that day;

and, notwithstanding anything in section 1 or 2 of this Measure, the amount of that grant and, if necessary, of that annuity shall be recalculated accordingly, but any change resulting from the recalculation shall not take effect until the provision in question actually comes into force in accordance with the scheme or order containing it.

Section 47(1).

SCHEDULE 5

MINOR AND CONSEQUENTIAL AMENDMENTS

The Land Registration Act 1925 (c.21)

1. In section 99 of the Land Registration Act 1925—

(a) in subsection (1), for the words from “(a)” to “Commissioners” there shall be substituted the words “from the Church Commissioners”; and for the words “any of the above-mentioned bodies” and the words “the proper body” there shall be substituted the words “the Church Commissioners”;

(b) in subsection (2), for the words “Queen Anne’s Bounty”, where first occurring, there shall be substituted the words “the Church Commissioners”, and after the word “Bounty”, in both places where it subsequently occurs, there shall be inserted the words “or the said Commissioners”;

(c) in subsection (3), for the words “Queen Anne’s Bounty”, there shall be substituted the words “the Church Commissioners”.

The Ecclesiastical Jurisdiction Measure 1963 (No. 1)

2. In section 71(4) of the Ecclesiastical Jurisdiction Measure 1963, for the words from “the net” to the end of the subsection there shall be substituted the words “any one or more of the following, that is to say, the guaranteed annuity payable in respect of the benefice under section 1 of the Endowments and Glebe Measure 1976, the personal grant, if any, to which such person is entitled under section 2 of that Measure and the profits of the benefice.”

as he thinks fit and may, if necessary, sequester the said profits for the payment of the part thereof so assigned”.

SCH. 5

The Cathedrals Measure 1963 (No. 2)

3. In section 17(2) of the Cathedrals Measure 1963 for the words from “and subsection” to the end there shall be substituted the words “and if at any time any part of any sum which has been so appropriated is expended for the benefit of that cathedral, the annual sum or sums payable to the cathedral chapter by the Commissioners shall be reduced by the proportion which the amount so expended bears to the total amount held to the account of that chapter by the Commissioners”.

The Repair of Benefice Buildings Measure 1972 (No. 2)

4.—(1) The Repair of Benefice Buildings Measure 1972 shall be amended in accordance with the following provisions of this paragraph.

(2) In section 16—

(a) in subsection (1)(e), for the words “or improvement” there shall be substituted the words “improvement, division or demolition”, and after the word “residence” there shall be inserted the words “or the safeguarding of the amenities thereof”; and

(b) at the end there shall be inserted the following subsection:—

“(3) The Board shall in respect of any parsonage house in the diocese have power to defray on behalf of the Diocesan Board of Finance for the diocese any periodical payment in respect of a loan made by the Commissioners to that Board for the provision, improvement, division or demolition of that house or the safeguarding of the amenities thereof and any accrued interest thereon.”

(3) In the proviso to section 20(1) for the word “glebe” there shall be substituted the words “any other”.

(4) In the proviso to section 26(1), after the words “out of” there shall be inserted the words “moneys in the hands of the sequestrators or out of”.

(5) In section 31(1)—

(a) after the definition of “Diocesan Dilapidations Board” there shall be inserted the following definition:—

“‘diocesan glebe land’ has the same meaning as in the Endowments and Glebe Measure 1976”;

(b) in the definition of “parsonage house” the words from “or the designated” to “1968” shall be omitted; and

(c) at the end there shall be inserted the following definition:—

“‘team vicar’s house’ means a residence vested in a Diocesan Board of Finance as part of the diocesan glebe land of the diocese, being the designated residence of a vicar in a team ministry established for a benefice under section 19 of the Pastoral Measure 1968, except a resi- 1968 No. 1.

SCH. 5.

dence held under a lease which makes the landlord wholly or mainly responsible for the repairs, and includes the buildings, gardens, orchards, paddocks, walls, fences and appurtenances necessary for the convenient occupation of the residence ”.

(6) For section 31(2) there shall be substituted the following subsection:—

“(2) This Measure shall, so far as applicable, apply to a team vicar’s house as it applies to a parsonage house with the omission of references to the patron and to a previous incumbent, and with the substitution, for references to the incumbent, of references to the Diocesan Board of Finance in which the house is vested and the vicar, except that—

(a) in sections 9, 12(3), 13(5), 15(1)(a) and 16(2), the references shall be to that Board only ;

(b) in sections 4(1)(b), 11 and 13(1) and (4), the references shall be to the vicar only ; and

(c) in sections 20(2) and 21(2), the references shall be to such one of them as is responsible for the contravention in question.”

Section 47(2).

SCHEDULE 6

TRANSITIONAL PROVISIONS

1. Without prejudice to section 15(1) of this Measure, a Diocesan Board of Finance may, notwithstanding section 19(1) thereof, allow any person who immediately before the appointed day is in occupation of any dwelling-house on glebe land under an agreement by virtue of which no rent or less than the market rent is payable in respect of his occupation to remain in occupation in accordance with the agreement after the dwelling-house vests in the Board by virtue of the said section 15.

1972 No. 2.

2. Where an incumbent has, or the sequestrators of a benefice have, entered into a contract for the execution of repairs to glebe buildings, being repairs which by virtue of an order under section 6 or 8 of the Repair of Benefice Buildings Measure 1972 were required to be executed, and that contract has not been completed at the appointed day, the Diocesan Board of Finance in which those buildings vest by virtue of section 15 of this Measure shall have the like rights and obligations under the contract as the incumbent or sequestrators, as the case may be, and the Board shall indemnify the incumbent and his personal representative or the sequestrators, as the circumstances require, in respect of the cost of fulfilling such obligations.

3.—(1) The repeal by this Measure of any provision of the Repair of Benefice Buildings Measure 1972 shall not prevent a Parsonages Board from taking such proceedings as could have been taken but for the repeal to recover any sum due to the Board immediately before the appointed day from an incumbent or his personal representative or the sequestrators of a benefice under section 6(3), 6(4) or 22(3) of that Measure or under paragraph 2(4) of Schedule 1 thereto.

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(2) Any sum which immediately before the appointed day is by virtue of section 7(2) of the said Measure of 1972, or that subsection as applied by section 8 thereof, deemed to be charged on the revenues of a benefice shall be recoverable from the incumbent of the benefice or the sequestrators thereof as a debt due to the Diocesan Board of Finance for the diocese to which the benefice belongs.

(3) Any sum recovered by a Diocesan Board of Finance by virtue of sub-paragraph (2) above shall be credited to the diocesan glebe land income account kept by that Board in accordance with section 26(1)(a) of this Measure.

SCHEDULE 7

Section 47(3).

ENACTMENTS WHICH CEASE TO APPLY TO INCUMBENTS

Chapter	Short Title	Extent of Repeal
13 Eliz. 1. c. 10.	The Ecclesiastical Leases Act 1571.	The whole Act except section 2.
14 Eliz. 1. c. 11.	The Ecclesiastical Leases Act 1572.	The whole Act.
18 Eliz. 1. c. 11.	The Ecclesiastical Leases Act 1575.	The whole Act.
39 & 40 Geo. 3. c. 41.	The Ecclesiastical Leases Act 1800.	The whole Act.
6 & 7 Will. 4. c. 64.	The Ecclesiastical Leases (Amendment) Act 1836.	The whole Act.
5 & 6 Vict. c. 108.	The Ecclesiastical Leasing Act 1842.	The whole Act.
21 & 22 Vict. c. 57.	The Ecclesiastical Leasing Act 1858.	The whole Act.
26 Geo. 5. & 1 Edw. 8. No. 5.	The Ecclesiastical Commissioners (Powers) Measure 1936.	Section 6.
1967 c. 10.	The Forestry Act 1967.	In Schedule 2, paragraph 3.

SCHEDULE 8

Section 47(4).

ACTS AND MEASURES REPEALED

ACTS

Chapter	Short Title	Extent of Repeal
28 Hen. 8. c. 11.	The Tithe Act 1536.	Sections 1 to 3 in so far as they apply to archdeaconries and benefices. Section 8.
17 Geo. 3. c. 53.	The Clergy Residences Repair Act 1776.	The whole Act except sections 13 and 15. In section 13, the words from "upon the" to "principal". In section 15, the words from the beginning to "and that".

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Chapter	Short Title	Extent of Repeal
21 Geo. 3. c. 66.	The Clergy Residences Repair Act 1780.	The whole Act.
55 Geo. 3. c. 147.	The Glebe Exchange Act 1815.	The whole Act.
56 Geo. 3. c. 52.	The Glebe Exchange Act 1816.	The whole Act.
1 Geo. 4. c. 6.	The Glebe Exchange Act 1820.	The whole Act.
6 Geo. 4. c. 8.	The Glebe Exchange Act 1825.	The whole Act.
1 & 2 Vict. c. 23.	The Parsonages Act 1838.	The whole Act except sections 5 and 16. In section 5, the words from "upon the" to "principal". Sections 70 and 71.
1 & 2 Vict. c. 106.	The Pluralities Act 1838.	In section 73, the words from "upon the" to "principal". Sections 74 and 83. Sections 90 to 92. In section 93, the words from "and also" to the end. Section 94. In section 96, the words from "and such portion" to "curate", where next occurring. In section 99, the words from "such stipend" to "thereof". In section 100, the words from "out of" to "hands". Section 101. Schedule 2. Section 14.
1 & 2 Vict. c. 107.	The Church Building Act 1838.	
2 & 3 Vict. c. 49.	The Church Building Act 1839.	The whole Act.
3 & 4 Vict. c. 20.	The Queen Anne's Bounty Act 1840.	Section 5.
3 & 4 Vict. c. 113.	The Ecclesiastical Commissioners Act 1840.	In section 55, the words from the beginning to "provided; and". Section 56.
4 & 5 Vict. c. 39.	The Ecclesiastical Commissioners Act 1841.	In section 12, the words from "and for the competent" to "arise" and the words from "shall be endowed" to "on and".
5 & 6 Vict. c. 27.	The Ecclesiastical Leases Act 1842.	The whole Act.
13 & 14 Vict. c. 94.	The Ecclesiastical Commissioners Act 1850.	Section 25.
19 & 20 Vict. c. 50.	The Sale of Advowsons Act 1856.	In section 9, the words from "3d." to "annum".
24 & 25 Vict. c. 105.	The Ecclesiastical Leases Act 1861.	The whole Act.
25 & 26 Vict. c. 52.	The Ecclesiastical Leases Act 1862.	The whole Act.

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Chapter	Short Title	Extent of Repeal
28 & 29 Vict. c. 69.	The Parsonages Act 1865.	Section 1. In section 2, the words from "and the said monies" to the end.
29 & 30 Vict. c. 111.	The Ecclesiastical Commissioners Act 1866.	Sections 9 and 16. In section 17, the words from the beginning to "next" where last occurring.
34 & 35 Vict. c. 45.	The Sequestration Act 1871.	In section 1, the words from "with such stipend" to "license" where next occurring.
35 & 36 Vict. c. 49.	The Church Seats Act 1872.	Section 3.
48 & 49 Vict. c. 54.	The Pluralities Acts Amendment Act 1885.	Section 3. In section 9, the words from "and to assign" to "fit". In section 13, the words from "and to" to "same" and the words from "with such stipend" to "pounds".
51 & 52 Vict. c. 20.	The Glebe Lands Act 1888.	The whole Act.
62 & 63 Vict. c. 30.	The Commons Act 1899.	In Schedule 1, the reference to the Clergy Residences Repair Act 1776.
8 Edw. 7. c. 36.	The Small Holdings and Allotments Act 1908.	Section 40(3).
8 & 9 Geo. 5. c. 42.	The Loans (Incumbents of Benefices) Amendment Act 1918.	Section 48. The whole Act.
9 & 10 Geo. 5. c. 59.	The Land Settlement (Facilities) Act 1919.	Section 8.
12 & 13 Geo. 5. c. 16.	The Law of Property Act 1922.	Section 43(8).
15 & 16 Geo. 5. c. 87.	The Tithe Act 1925.	Section 3.
16 & 17 Geo. 5. c. 11.	The Law of Property (Amendment) Act 1926.	In the Schedule, the entry relating to section 43 of the Law of Property Act 1922.
17 & 18 Geo. 5. c. 36.	The Landlord and Tenant Act 1927.	Section 24(3). In Schedule 2, in Part II, in paragraph 1, sub-paragraph (b) and in sub-paragraph (c) the words from "and every" to the end.
26 Geo. 5. & 1 Edw. 8. c. 43.	The Tithe Act 1936.	In Schedule 3, in Part II, paragraphs 1 to 3.
6 & 7 Geo. 6. c. 21.	The War Damage Act 1943.	In section 76(2), paragraph (c).
11 & 12 Geo. 6. c. 63.	The Agricultural Holdings Act 1948.	Section 88(2) and (3).
12 & 13 Geo. 6. c. 74.	The Coast Protection Act 1949.	In section 33(1)(b), the words from "or make" to the end.
2 & 3 Eliz. 2. c. 56.	The Landlord and Tenant Act 1954.	Section 61.
1965 c. 2.	The Administration of Justice Act 1965.	In Schedule 1, the entry relating to the Glebe Exchange Act 1815.
1972 c. 70.	The Local Government Act 1972.	In Schedule 29, paragraph 21.

MEASURES

Number	Short Title	Extent of Repeal
14 & 15 Geo. 5. No. 3.	The Ecclesiastical Dilapidations Measure 1923.	Section 52(6).
16 & 17 Geo. 5. No. 8.	The Benefices (Ecclesiastical Duties) Measure 1926.	Parts II and III.
18 & 19 Geo. 5. No. 1.	The Ecclesiastical Commissioners (Provision for Unbeneficed Clergy) Measure 1928.	The whole Measure.
20 & 21 Geo. 5. No. 5.	The Ecclesiastical Commissioners (Sodor and Man) Measure 1930.	In section 1, the words from "and of" to "1928".
21 & 22 Geo. 5. No. 6.	The Ecclesiastical Commissioners (Provision for Unbeneficed Clergy) Measure 1928 (Amendment) Measure 1931.	The whole Measure.
23 & 24 Geo. 5. No. 4.	The Benefices (Sequestrations) Measure 1933.	In section 1(1), the words from "in addition" to "diocese" and the word "also". Sections 3 and 4. In section 6 the words from "and for" to the end.
26 Geo. 5. & 1 Edw. 8. No. 5.	The Ecclesiastical Commissioners (Powers) Measure 1936.	Sections 5, 7 and 8.
1 Edw. 8. & 1 Geo. 6. No. 1.	The Queen Anne's Bounty (Powers) Measure 1937.	The whole Measure.
1 & 2 Geo. 6. No. 3.	The Parsonages Measure 1938.	In section 1(1A), paragraph (iii) and the word "and" immediately preceding it. In section 2(1), paragraph (iv). In section 5(2), the words from "under the" to "same", the word "other" and the words from "or in any" to "Measure", where last occurring. Section 10.
1 & 2 Geo. 6. No. 4.	The Ecclesiastical Commissioners (Powers) Measure 1938.	The whole Measure except sections 2(1), (2) and (4), 9 and 13.
2 & 3 Geo. 6. No. 1.	The Queen Anne's Bounty (Powers) Measure 1939.	The whole Measure.
6 & 7 Geo. 6. No. 1.	The New Parishes Measure 1943.	In section 14, in subsection (2), the words from "and be" to "benefices", and in subsection (3), the words from "or as" to the end. In section 16(2), the words "or other ecclesiastical person", and the words from "or, if the land" to the end.

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Number	Short Title	Extent of Repeal
6 & 7 Geo. 6. No. 1— <i>cont.</i>	The New Parishes Measure 1943— <i>cont.</i>	In section 17(6), the words from "the Union" to "1952" and the words from "or the" to the end. Section 1(2) and (3).
9 & 10 Geo. 6. No. 1.	The Ecclesiastical Commissioners (Curate Grants) Measure 1946.	The whole Measure.
14 & 15 Geo. 6. No. 5.	The Benefices (Stabilization of Incomes) Measure 1951.	Section 2(b)(iii).
1 & 2 Eliz. 2. No. 2.	The Diocesan Stipends Funds Measure 1953.	The whole Measure.
1 & 2 Eliz. 2. No. 4.	The Archdeaconries (Augmentation) Measure 1953.	Sections 3, 4 and 7.
7 & 8 Eliz. 2. No. 2.	The Vacancies in Sees Measure 1959.	Sections 13 and 14.
8 & 9 Eliz. 2. No. 1.	The Church Property (Miscellaneous Provisions) Measure 1960.	In section 2(2)(a), the words "or in the endowments of his benefice".
1964 No. 2.	The Incumbents and Churchwardens (Trusts) Measure 1964.	In section 33, subsection (1), in subsection (2) the proviso, and subsections (6) to (10). In section 38, in paragraph (f) the words "or of curacy endowments" and the words from "and (9)" to the end. Section 70.
1968 No. 1.	The Pastoral Measure 1968.	In section 76(2), the words "any glebe land or glebe house or". In section 85(2), in paragraph (b), the words from "loans" to "1918" and paragraphs (c) and (f). In Schedule 3, in paragraph 6(1), the words "or endowments" and the words from "or, in" to the end; and paragraphs 7(2) and 10(2). In Schedule 7, paragraph 2, in paragraph 3(1), the words "in the Tithe Act 1536 or" and the word "other"; in paragraph 6 the words "and the Commissioners" and "or the Commissioners", and paragraph 7(1). Section 2(2). In section 4, in subsection (1)(e) and in subsection (2), the words "or any glebe building". Sections 6 and 7. Section 8(4).
1972 No. 2.	The Repair of Benefice Buildings Measure 1972.	

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Number	Short Title	Extent of Repeal
1972 No. 2. —cont.	The Repair of Benefice Buildings Measure 1972. —cont.	In section 12, in subsection (1), the words from "and (b)" to "incumbent", in subsection (3), the words "or glebe building", the words "in the case of a parsonage house" and the words from "and, in" to "damage", where next occurring, and subsection (4). In section 18(3), paragraph (c). In section 19, in subsection (4), the words "or any glebe building" and the words "or glebe building, as the case may be", and in subsection (6), the words "and any scheme under section 7". In section 20, in subsection (1), the words "on any glebe land or", in subsection (3), the words "on glebe land or" and in subsection (6), the words "or any glebe building, as the case may be". In section 21, in subsection (1), the words "or any glebe buildings". Section 22. Section 26(3) and (4). In section 31(1), in the definition of "buildings of a benefice" the words from "and" to "benefice", the definition of "glebe building" and in the definition of "parsonage house" the words from "or the designated" to "1968". In Schedule 1, paragraph 2(4).